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April 21, 2025

ENGROSSED HOUSE
BILL NO. 1751

By: Kerbs of the House

and

Hall of the Senate

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 1-168, which relates to the definition of state; modifying definition; amending 47 O.S. 2021, Section 2-116, as amended by Section 34, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024, Section 2-116), which relates to the giving of notice; detailing notice to be given by Service Oklahoma; amending 47 O.S. 2021, Section 6-101, as last amended by Section 34, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-101), which relates to class requirements for driver licenses; prohibiting the holding of certain credentials; authorizing the holding of two types of certain credentials until certain expiration; requiring certain surrender of credentials; amending 47 O.S. 2021, Section 6-105.3, as last amended by Section 42, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105.3), which relates to issuance of identification cards; authorizing the holding of two types of certain credentials until certain expiration; requiring certain surrender of credentials; amending 47 O.S. 2021, Section 6-111, as last amended by Section 46, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-111), which relates to issuance of license or identification card; modifying certain record-keeping requirements; authorizing Service Oklahoma to maintain certain discretion regarding driver licenses and identification cards; amending 47 O.S. 2021, Section 6-115, as amended by Section 55, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024, Section 6-115), which relates to expiration of license; modifying time frame for certain credential to be considered valid form of identification; amending 47 O.S. 2021,

1 Section 6-116, as last amended by Section 18, Chapter
2 310, O.S.L. 2023 (47 O.S. Supp. 2024, Section 6-116),
3 which relates to change of name or address; modifying
4 requirements for certain application; amending 47
5 O.S. 2021, Section 6-122, as last amended by Section
6 8, Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2024,
7 Section 6-122), which relates to renewal or
8 replacement online or by mail; authorizing certain
9 renewal and replacement of identification cards;
10 amending 47 O.S. 2021, Section 6-124, as amended by
11 Section 63, Chapter 282, O.S.L. 2022 (47 O.S. Supp.
12 2024, Section 6-124), which relates to issuance of
13 driver license or identification card; modifying
14 location for certain notation; requiring design of
15 certain notation and emblem by certain date;
16 requiring certain proof to obtain emblem; amending 47
17 O.S. 2021, Section 6-211, as amended by Section 20,
18 Chapter 310, O.S.L. 2023 (47 O.S. Supp. 2024, Section
19 6-211), which relates to right to appeal in court;
20 modifying certain timing provisions; modifying
21 contents of petition; providing certain hearing
22 requirements; stating final disposition does not need
23 to be completed in certain time frame; deleting
24 certain stay of appeal requirements; requiring
Service Oklahoma take no action if certain sworn
report is not received within time allotted; amending
47 O.S. 2021, Section 15-112, as amended by Section
98, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024,
Section 15-112), which relates to physical disability
temporary placard; stating certain application and
information submitted to remain confidential and
shall not be released; making certain exceptions;
amending 47 O.S. 2021, Section 156, as last amended
by Section 53, Chapter 452, O.S.L. 2024 (47 O.S.
Supp. 2024, Section 156), which relates to
prohibiting the purchase of automobiles or buses with
public funds; authorizing Service Oklahoma to make
certain purchases; amending 47 O.S. 2021, Section
752, as amended by Section 22, Chapter 310, O.S.L.
2023 (47 O.S. Supp. 2024, Section 752), which relates
to the administration of tests; requiring certain
collections of blood and breath samples to be valid
and admissible as evidence; requiring samples of
blood to be considered valid and admissible as
evidence; stating requirements for collection;
amending 47 O.S. 2021, Section 759, as amended by
Section 1, Chapter 93, O.S.L. 2023 (47 O.S. Supp.

2024, Section 759), which relates to the Board of Tests for Alcohol and Drug Influence; removing language requiring certain collections of blood and breath to be valid and admissible as evidence; removing language requiring analysis of blood to be considered valid and admissible as evidence; stating requirements for collection; amending 47 O.S. 2021, Section 1103, as amended by Section 9, Chapter 47, 1st Extraordinary Session, O.S.L. 2023 (47 O.S. Supp. 2024, Section 1103), which relates to certificates of title; authorizing retention of certain fee; amending 47 O.S. 2021, Section 1105A, as last amended by Section 66, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1105A), which relates to program to permit electronic filing, storage and delivery of certificates of title; modifying type of verification for the submission of certain documents; amending 47 O.S. 2021, Section 1106, as amended by Section 114, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024, Section 1106), which relates to refusal or revocation of title; authorizing Service Oklahoma to refuse to issue certificate of title or register vehicle; authorizing the revocation of certificate of title and registration; modifying certain notice of hearing requirements; requiring certain appearance; requiring hearing adhere to certain act; authorizing the promulgation of certain rules; amending 47 O.S. 2021, Section 1104, as last amended by Section 1, Chapter 442, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1104), which relates to apportionment of fees; modifying reference to certain collected monies; amending 47 O.S. 2021, Section 1137.1, as last amended by Section 11, Chapter 236, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1137.1), which relates to used dealer license, registration, and certificate of title; modifying description of certain temporary license plates; authorizing the display of certain temporary license plates for two months; amending 47 O.S. 2021, Section 1141.1, as last amended by Section 14, Chapter 236, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1141.1), which relates to retention of taxes and fees; modifying statutory reference; authorizing retention of certain collected fees; amending 47 O.S. 2021, Section 1143, as amended by Section 180, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024, Section 1143), which relates to compensation for licensed operators; authorizing retention of certain fees;

1 amending 63 O.S. 2021, Section 4021, as amended by
2 Section 215, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
3 2024, Section 4021), which relates to fee required
4 with application; modifying retention of certain
5 fees; amending 68 O.S. 2021, Section 2103, as amended
6 by Section 236, Chapter 282, O.S.L. 2022 (68 O.S.
7 Supp. 2024, Section 2103), which relates to tax on
8 transfer of legal ownership, use, and first
9 registration of vehicles; removing certain agency as
10 collector of fees; modifying the distribution of
11 certain collected penalties; repealing 47 O.S. 2021,
12 Sections 6-110.2 and 1113.3, which relate to
13 computerized finger imaging and the Oklahoma License
14 Plate Design Task Force; providing an effective date;
15 and declaring an emergency.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 47 O.S. 2021, Section 1-168, is
18 amended to read as follows:

19 Section 1-168. State.

20 A state, territory or possession of the United States, the
21 District of Columbia, the Commonwealth of Puerto Rico or a province
22 or territory of the Dominion of Canada.

23 SECTION 2. AMENDATORY 47 O.S. 2021, Section 2-116, as
24 amended by Section 34, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024,
Section 2-116), is amended to read as follows:

25 Section 2-116. A. Whenever the Department of Public Safety or
26 the Oklahoma Insurance Department is authorized or required to give
27 any notice under this act or other law regulating the operation of
28 vehicles, unless a different method of giving such notice is

1 otherwise expressly prescribed, such notice shall be given either by
2 personal delivery thereof to the person to be so notified or by
3 deposit in the United States mail of such notice in an envelope with
4 first class postage prepaid, addressed to such person at the address
5 as shown by the records of the Department. The giving of notice by
6 mail is complete upon the expiration of ten (10) days after such
7 deposit of said notice. Proof of the giving of notice in either
8 such manner may be made by the certificate of any officer or
9 employee of the Department or affidavit of any person over eighteen
10 (18) years of age, naming the person to whom such notice was given
11 and specifying the time, place and manner of the giving thereof.
12 Failure of the person to receive notice because of failure to notify
13 the Department of a change in his or her current mailing address, as
14 required by Section 6-116 of this title, shall not be sufficient
15 grounds for the person to protest the notice.

16 B. Whenever Service Oklahoma is authorized or required to give
17 any notice under this title, unless a different method of giving
18 such notice is otherwise expressly prescribed, such notice shall be
19 given by mailing such notice by United States mail, in an envelope
20 with first class postage prepaid, addressed to such person at the
21 address as shown by the records of Service Oklahoma. The giving of
22 notice by mail is complete upon the expiration of ten (10) days
23 after such mailing. Service Oklahoma may show proof of such mailing
24 by certificate of any officer or employee of Service Oklahoma or

1 affidavit of any person over eighteen (18) years of age, naming the
2 person to whom such notice was given and specifying the time, place,
3 and manner of the giving thereof. Failure of the person to receive
4 notice because of failure to notify Service Oklahoma of a change in
5 his or her current mailing address, as required by Section 6-116 of
6 this title, shall not be sufficient grounds for the person to
7 protest the notice.

8 SECTION 3. AMENDATORY 47 O.S. 2021, Section 6-101, as
9 last amended by Section 34, Chapter 452, O.S.L. 2024 (47 O.S. Supp.
10 2024, Section 6-101), is amended to read as follows:

11 Section 6-101. A. No person, except those hereinafter
12 expressly exempted in Sections 6-102 and 6-102.1 of this title,
13 shall operate any motor vehicle upon a highway in this state unless
14 the person has a valid Oklahoma driver license for the class of
15 vehicle being operated under the provisions of this title. No
16 person shall be permitted to possess more than one valid license at
17 any time, except as provided in paragraph 4 of subsection F of this
18 section.

19 B. 1. No person shall operate a Class A commercial motor
20 vehicle unless the person is eighteen (18) years of age or older and
21 holds a valid Class A commercial license, except as provided in
22 paragraph 5 of this subsection and subsection F of this section.
23 Any person holding a valid Class A commercial license shall be
24

1 permitted to operate motor vehicles in Classes A, B, C and D, except
2 as provided for in paragraph 4 of this subsection.

3 2. No person shall operate a Class B commercial motor vehicle
4 unless the person is eighteen (18) years of age or older and holds a
5 valid Class B commercial license, except as provided in paragraph 5
6 of subsection F of this section. Any person holding a valid Class B
7 commercial license shall be permitted to operate motor vehicles in
8 Classes B, C and D, except as provided for in paragraph 4 of this
9 subsection.

10 3. No person shall operate a Class C commercial motor vehicle
11 unless the person is eighteen (18) years of age or older and holds a
12 valid Class C commercial license, except as provided in subsection F
13 of this section. Any person holding a valid Class C commercial
14 license shall be permitted to operate motor vehicles in Classes C
15 and D, except as provided for in paragraph 4 of this subsection.

16 4. No person under twenty-one (21) years of age shall be
17 licensed to operate any motor vehicle which is required to be
18 placarded for hazardous materials pursuant to 49 C.F.R., Part 172,
19 subpart F, except as provided in subsection F of this section;
20 provided, a person eighteen (18) years of age or older may be
21 licensed to operate a farm vehicle which is required to be placarded
22 for hazardous materials pursuant to 49 C.F.R., Part 172, subpart F,
23 except as provided in subsection F of this section.
24

1 5. A person at least seventeen (17) years of age who
2 successfully completes all examinations required by law may be
3 issued by Service Oklahoma:

4 a. a restricted Class A commercial license which shall
5 grant to the licensee the privilege to operate a Class
6 A or Class B commercial motor vehicle for harvest
7 purposes or a Class D motor vehicle, or

8 b. a restricted Class B commercial license which shall
9 grant to the licensee the privilege to operate a Class
10 B commercial motor vehicle for harvest purposes or a
11 Class D motor vehicle.

12 6. No person shall operate a Class D motor vehicle unless the
13 person is sixteen (16) years of age or older and holds a valid Class
14 D license, except as provided for in Section 6-102 or 6-105 of this
15 title. Any person holding a valid Class D license shall be
16 permitted to operate motor vehicles in Class D only.

17 C. Any person issued a driver license pursuant to this section
18 may exercise the privilege thereby granted upon all streets and
19 highways in this state.

20 D. No person shall operate a motorcycle or motor-driven cycle
21 without having a valid Class A, B, C or D license with a motorcycle
22 endorsement. Except as otherwise provided by law, any new applicant
23 for an original driver license shall be required to successfully
24 complete a written examination, vision examination and driving

1 examination for a motorcycle as prescribed by the Department of
2 Public Safety, in conjunction with Service Oklahoma, and a certified
3 state-approved motorcycle basic rider course approved by the
4 Department, in conjunction with Service Oklahoma, if the applicant
5 is seventeen (17) years of age or younger to be eligible for a
6 motorcycle endorsement thereon. The written examination and driving
7 examination for a motorcycle shall be waived by Service Oklahoma
8 upon verification that the person has successfully completed a
9 certified Motorcycle Safety Foundation rider course approved by the
10 Department, in conjunction with Service Oklahoma.

11 E. Except as otherwise provided by law, any person who lawfully
12 possesses a valid Oklahoma driver license which is eligible for
13 renewal shall be required to successfully complete a written
14 examination, vision examination and driving examination for a
15 motorcycle as prescribed by the Department, in conjunction with
16 Service Oklahoma, and a certified state-approved motorcycle basic
17 rider course approved by the Department, in conjunction with Service
18 Oklahoma, if the person is seventeen (17) years of age or younger to
19 be eligible for a motorcycle endorsement. The written examination
20 and driving examination for a motorcycle shall be waived by Service
21 Oklahoma upon verification that the person has successfully
22 completed a certified Motorcycle Safety Foundation rider course
23 approved by the Department, in conjunction with Service Oklahoma.

24

1 F. 1. Any person eighteen (18) years of age or older may apply
2 for a restricted Class A, B or C commercial learner permit. Service
3 Oklahoma, after the applicant has passed all parts of the
4 examination for a Class D license and has successfully passed all
5 parts of the examination for a Class A, B or C commercial license
6 other than the driving examination, may issue to the applicant a
7 commercial learner permit which shall entitle the person having
8 immediate lawful possession of the commercial learner permit and a
9 valid Oklahoma driver license or provisional driver license pursuant
10 to Section 6-212 of this title to operate a Class A, B or C
11 commercial motor vehicle upon the public highways solely for the
12 purpose of behind-the-wheel training in accordance with rules
13 promulgated by the Department.

14 2. This commercial learner permit shall be issued for a period
15 as provided in Section 6-115 of this title of one (1) year;
16 provided, such commercial learner permit may be suspended, revoked,
17 canceled, denied or disqualified at the discretion of the
18 Department, with notice to Service Oklahoma, for violation of the
19 restrictions, for failing to give the required or correct
20 information on the application or for violation of any traffic laws
21 of this state pertaining to the operation of a motor vehicle.
22 Except as otherwise provided, the lawful possessor of a commercial
23 learner permit who has been issued a commercial learner permit for a
24 minimum of fourteen (14) days may have the restriction requiring an

1 accompanying driver removed by satisfactorily completing a driver's
2 examination; provided, the removal of a restriction shall not
3 authorize the operation of a Class A, B or C commercial motor
4 vehicle if such operation is otherwise prohibited by law.

5 3. No person shall apply for and Service Oklahoma shall not
6 issue an original Class A, B or C driver license until the person
7 has been issued a commercial learner permit and held the permit for
8 at least fourteen (14) days. Any person who currently holds a Class
9 B or C license and who wishes to apply for another class of
10 commercial driver license shall be required to apply for a
11 commercial learner permit and to hold the permit for at least
12 fourteen (14) days before applying for the Class A or B license, as
13 applicable. Any person who currently holds a Class A, B or C
14 license and who wishes to add an endorsement or remove a restriction
15 for which a skills examination is required shall be required to
16 apply for a commercial learner permit and to hold the permit for at
17 least fourteen (14) days before applying for the endorsement.

18 4. A commercial learner permit shall be issued by Service
19 Oklahoma as a separate and unique document which shall be valid only
20 in conjunction with a valid Oklahoma driver license or provisional
21 driver license pursuant to Section 6-212 of this title, both of
22 which shall be in the possession of the person to whom they have
23 been issued whenever that person is operating a commercial motor
24 vehicle as provided in this subsection.

1 5. After one renewal of a commercial learner permit, as
2 provided in paragraph 2 of this subsection, a commercial permit
3 shall not be renewed again. Any person who has held a commercial
4 learner permit for the initial issuance period and one renewal
5 period shall not be eligible for and Service Oklahoma shall not
6 issue another renewal of the permit; provided, the person may
7 reapply for a new commercial learner permit, as provided for in this
8 subsection.

9 G. 1. For purposes of this title:

- 10 a. "REAL ID Compliant Driver License" or "Identification
11 Card" means a driver license or identification card
12 issued by this state that has been certified by the
13 United States Department of Homeland Security (USDHS)
14 as compliant with the requirements of the REAL ID Act
15 of 2005, Public Law No. 109-13. A REAL ID Compliant
16 Driver License or Identification Card and the process
17 through which it is issued incorporate a variety of
18 security measures designed to protect the integrity
19 and trustworthiness of the license or card. A REAL ID
20 Compliant Driver License or Identification Card will
21 be clearly marked on the face indicating that it is a
22 compliant document, and
- 23 b. "REAL ID Noncompliant Driver License" or
24 "Identification Card" means a driver license or

1 identification card issued by this state that has not
2 been certified by the United States Department of
3 Homeland Security (USDHS) as being compliant with the
4 requirements of the REAL ID Act of 2005. A REAL ID
5 Noncompliant Driver License or Identification Card
6 will be clearly marked on the face indicating that it
7 is not compliant with the federal REAL ID Act of 2005
8 and is not acceptable for official federal purposes.
9 The driver license or identification card will have a
10 unique design or color indicator that clearly
11 distinguishes it from a compliant license or card.

12 2. Original Driver License and Identification Card Issuance:

- 13 a. Application for an original REAL ID Compliant or REAL
14 ID Noncompliant Driver License or Identification Card
15 shall be made to Service Oklahoma or a licensed
16 operator provided such licensed operator is authorized
17 to process application for REAL ID Compliant Driver
18 Licenses and Identification Cards. Application for a
19 REAL ID Noncompliant Driver License or Identification
20 Card shall be made to Service Oklahoma.
- 21 b. Service Oklahoma employees or authorized licensed
22 operators shall perform all document recognition and
23 other requirements needed for approval of an original
24 REAL ID Compliant Driver License or Identification

1 Card application. Service Oklahoma employees shall
2 perform all document recognition and other
3 requirements needed for approval of a REAL ID
4 Noncompliant Driver License or Identification Card
5 application.

6 c. Upon approval of an original REAL ID Compliant or REAL
7 ID Noncompliant Driver License or Identification Card
8 application, the applicant may take the approved
9 application document to a licensed operator to receive
10 a temporary driver license or identification card.

11 d. The licensed operator shall process the approved REAL
12 ID Compliant or REAL ID Noncompliant Driver License or
13 Identification Card application and upon payment shall
14 provide the applicant a temporary driver license or
15 identification card. A temporary driver license or
16 identification card shall afford the holder the
17 privileges otherwise granted by the specific class of
18 driver license or identification card for the period
19 of time listed on the temporary driver license or
20 identification card or the period of time prior to the
21 applicant receiving a REAL ID Compliant or REAL ID
22 Noncompliant Driver License or Identification Card,
23 whichever time period is shorter.
24

1 3. REAL ID Compliant Driver License and Identification Card

2 Renewal and Replacement:

- 3 a. Application for renewal or replacement of a REAL ID
- 4 Compliant Driver License or Identification Card may be
- 5 made to Service Oklahoma or to a licensed operator;
- 6 provided, such licensed operator is authorized to
- 7 process application for REAL ID Compliant Driver
- 8 Licenses and Identification Cards. A licensed
- 9 operator may process the voluntary downgrade of a REAL
- 10 ID Compliant Commercial Driver License to any lower
- 11 class license upon request of the licensee; provided,
- 12 no additional endorsements or restrictions are placed
- 13 on the license.
- 14 b. Service Oklahoma employees or authorized licensed
- 15 operators shall perform all document recognition and
- 16 other requirements needed for approval of a renewal or
- 17 replacement REAL ID Compliant Driver License or
- 18 Identification Card application.
- 19 c. Upon approval of a renewal or replacement REAL ID
- 20 Compliant Driver License or Identification Card
- 21 application, the applicant may receive a temporary
- 22 driver license or identification card from Service
- 23 Oklahoma or an authorized licensed operator.
- 24

1 d. A temporary driver license or identification card
2 acquired under the provisions of this paragraph shall
3 afford the holder the privileges otherwise granted by
4 the specific class of driver license or identification
5 card being renewed or replaced for the period of time
6 listed on the temporary driver license or
7 identification card or the period of time prior to the
8 applicant receiving a REAL ID Compliant Driver License
9 or Identification Card, whichever time period is
10 shorter.

11 e. For purposes of this title, an application for a REAL
12 ID Compliant Driver License or Identification Card by
13 an individual with a valid Oklahoma-issued driver
14 license or identification card shall be considered a
15 renewal of a REAL ID Compliant Driver License or
16 Identification Card.

17 4. REAL ID Noncompliant Driver License and Identification Card
18 Renewal and Replacement:

19 a. Application for renewal or replacement of a REAL ID
20 Noncompliant Driver License or Identification Card may
21 be made to Service Oklahoma or to a licensed operator.
22 A licensed operator may process the voluntary
23 downgrade of a REAL ID Noncompliant Commercial Driver
24 License to any lower class license upon request of the

licensee; provided, no additional endorsements or restrictions are added to the license.

b. Service Oklahoma employees or licensed operators shall perform all document recognition and other requirements needed for approval of a renewal or replacement REAL ID Noncompliant Driver License or Identification Card application.

c. Upon approval of a renewal or replacement REAL ID Noncompliant Driver License or Identification Card application, the applicant may receive a temporary driver license or identification card from Service Oklahoma or a licensed operator.

d. A temporary driver license or identification card acquired under the provisions of this paragraph shall afford the holder the privileges otherwise granted by the specific class of driver license or identification card being renewed or replaced for the period of time listed on the temporary driver license or identification card or the period of time prior to the applicant receiving a REAL ID Noncompliant Driver License or Identification Card, whichever time period is shorter.

H. 1. The fee charged for an approved application for an original Oklahoma REAL ID Compliant or REAL ID Noncompliant Driver

1 License or an approved application for the addition of an
2 endorsement to a current valid Oklahoma REAL ID Compliant or REAL ID
3 Noncompliant Driver License shall be assessed in accordance with the
4 following schedule:

5	Class A Commercial Learner	
6	Permit	\$25.00
7	Class A Commercial License	\$25.00
8	Class B Commercial Learner	
9	Permit	\$15.00
10	Class B Commercial License	\$15.00
11	Class C Commercial Learner	
12	Permit	\$15.00
13	Class C Commercial License	\$15.00
14	Class D License	\$ 4.00
15	Motorcycle Endorsement	\$ 4.00

16 2. Notwithstanding the provisions of Section 1104 of this
17 title, all monies collected from the fees charged for Class A, B and
18 C commercial licenses pursuant to the provisions of this subsection
19 shall be deposited in the General Revenue Fund of this state.

20 I. The fee charged for any failed examination shall be Four
21 Dollars (\$4.00) for any license classification. Notwithstanding the
22 provisions of Section 1104 of this title, all monies collected from
23 such examination fees pursuant to the provisions of this subsection
24 shall be deposited in the General Revenue Fund of this state.

1 J. In addition to any fee charged pursuant to the provisions of
2 subsection H of this section, the fee charged for the issuance or
3 renewal of a REAL ID Noncompliant Driver License shall be in
4 accordance with the following schedule; provided, that any applicant
5 who has a CDL Learner Permit shall be charged only the replacement
6 fee for the issuance of the license:

7	License Class	4-year	8-year
8	Class A Commercial Learner		
9	Permit	\$56.50	\$113.00
10	Class A Commercial License	\$56.50	\$113.00
11	Class B Commercial Learner		
12	Permit	\$56.50	\$113.00
13	Class B Commercial License	\$56.50	\$113.00
14	Class C Commercial Learner		
15	Permit	\$46.50	\$93.00
16	Class C Commercial License	\$46.50	\$93.00
17	Class D License	\$38.50	\$77.00

18 K. In addition to any fee charged pursuant to the provisions of
19 subsection H of this section, the fee charged for the issuance or
20 renewal of a REAL ID Compliant Driver License shall be in accordance
21 with the following schedule; provided, that any applicant who has a
22 CDL Learner Permit shall be charged only the replacement fee for the
23 issuance of the license:

24	License Class	4-year	8-year
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1	REAL ID Compliant Class A		
2	Commercial Learner Permit	\$56.50	\$113.00
3	REAL ID Compliant Class A		
4	Commercial License	\$56.50	\$113.00
5	REAL ID Compliant Class B		
6	Commercial Learner Permit	\$56.50	\$113.00
7	REAL ID Compliant Class B		
8	Commercial License	\$56.50	\$113.00
9	REAL ID Compliant Class C		
10	Commercial Learner Permit	\$46.50	\$93.00
11	REAL ID Compliant Class C		
12	Commercial License	\$46.50	\$93.00
13	REAL ID Compliant Class D		
14	License	\$38.50	\$77.00

15 L. A commercial learner permit may be renewed one time for a
16 period of one hundred eighty (180) days. The cost for the renewed
17 permit shall be the same as for the original permit.

18 M. Notwithstanding the provisions of Section 1104 of this
19 title, of each fee charged pursuant to the provisions of subsections
20 J, K and L of this section:

21 1. Five Dollars and fifty cents (\$5.50) of a 4-year license or
22 Eleven Dollars (\$11.00) of an 8-year license shall be deposited to
23 the Trauma Care Assistance Revolving Fund created in Section 1-
24 2530.9 of Title 63 of the Oklahoma Statutes;

1 2. Six Dollars and seventy-five cents (\$6.75) of a 4-year
2 license or Thirteen Dollars and fifty cents (\$13.50) of an 8-year
3 license shall be deposited to the Department of Public Safety
4 Computer Imaging System Revolving Fund to be used solely for the
5 purpose of administration and maintenance of the computerized
6 imaging system of the Department through October 31, 2022.

7 Beginning November 1, 2022, Six Dollars and seventy-five cents
8 (\$6.75) of a 4-year license or Thirteen Dollars and fifty cents
9 (\$13.50) of an 8-year license shall be deposited to the Service
10 Oklahoma Computer Imaging System Revolving Fund to be used solely
11 for the purpose of administration and maintenance of the
12 computerized imaging system of Service Oklahoma;

13 3. Ten Dollars (\$10.00) of a 4-year license or Twenty Dollars
14 (\$20.00) of an 8-year license shall be deposited to the Department
15 of Public Safety Revolving Fund for all original or renewal
16 issuances of licenses through October 31, 2022. Beginning November
17 1, 2022, Ten Dollars (\$10.00) of a 4-year license or Twenty Dollars
18 (\$20.00) of an 8-year license shall be deposited to the Service
19 Oklahoma Revolving Fund for all original or renewal issuances of
20 licenses; and

21 4. Five Dollars (\$5.00) of a 4-year license or Six Dollars
22 (\$6.00) of an 8-year license shall be deposited to the State Public
23 Safety Fund created in Section 2-147 of this title.
24

1 N. All original and renewal driver licenses shall expire as
2 provided in Section 6-115 of this title.

3 O. 1. Through May 31, 2025, any person sixty-two (62) to
4 sixty-four (64) years of age during the calendar year of issuance or
5 renewal of a Class D license or motorcycle endorsement shall be
6 charged the following prorated fee:

	4-year	8-year
7 Age 62	\$21.25	\$42.50
8 Age 63	\$17.50	\$35.00
9 Age 64	\$13.75	\$27.50

10
11 2. Any person sixty-five (65) years of age or older during the
12 calendar year of issuance or renewal of a Class D license or
13 motorcycle endorsement shall not be charged a fee.

14 P. No person who has been honorably discharged from active
15 service in any branch of the Armed Forces of the United States or
16 Oklahoma National Guard and who has been certified by the United
17 States Department of Veterans Affairs, its successor or the Armed
18 Forces of the United States to be a disabled veteran in receipt of
19 compensation at the one-hundred-percent rate for a permanent
20 disability sustained through military action or accident resulting
21 from disease contracted while in such active service and registered
22 with the veterans registry created by the Oklahoma Department of
23 Veterans Affairs shall be charged a fee for the issuance,
24 replacement or renewal of an Oklahoma driver license; provided, that

1 if a veteran has been previously exempt from a fee pursuant to this
2 subsection, no registration with the veterans registry shall be
3 required.

4 Q. In accordance with the provisions of subsection G of this
5 section, Service Oklahoma is authorized to promulgate rules for the
6 issuance and renewal of driver licenses authorized pursuant to the
7 provisions of Sections 6-101 through 6-309 of this title; provided,
8 that no such rules applicable to the issuance or renewal of REAL ID
9 Noncompliant Driver Licenses shall create more stringent standards
10 than such rules applicable as of January 1, 2017, unless directly
11 related to a specific change in statutory law concerning standards
12 for REAL ID Noncompliant Driver Licenses. Applications, upon forms
13 approved by Service Oklahoma, for such licenses shall be handled, in
14 accordance with the provisions of subsection G of this section, by
15 the licensed operator; provided, Service Oklahoma is authorized to
16 assume these duties in any county of this state. Each licensed
17 operator accepting applications for driver licenses shall receive
18 Six Dollars (\$6.00) for a 4-year REAL ID Noncompliant Driver License
19 or Twelve Dollars (\$12.00) for an 8-year REAL ID Noncompliant Driver
20 License or Ten Dollars (\$10.00) for a 4-year REAL ID Compliant
21 Driver License or Twenty Dollars (\$20.00) for an 8-year REAL ID
22 Compliant Driver License to be deducted from the total collected for
23 each license or renewal application accepted through June 30, 2023.
24 Beginning July 1, 2022, and ending on June 30, 2023, each motor

1 license agent or licensed operator accepting applications for driver
2 licenses for individuals over the age of sixty-five (65) years or
3 for applications for drivers pursuant to subsection P of this
4 section shall receive Six Dollars (\$6.00) for a 4-year driver
5 license or Twelve Dollars (\$12.00) for an 8-year driver license to
6 be deducted daily by the motor license agent or licensed operator
7 receipts. Beginning July 1, 2023, these fees shall be retained by
8 the licensed operator pursuant to subsection E of Section 1141.1 of
9 this title. The fees received by the licensed operator, authorized
10 by this subsection, shall be used for operating expenses. The
11 amount retained pursuant to this subsection shall not be retained by
12 any state agency. The fees received by the licensed operator,
13 authorized by this subsection, shall be used for operating expenses.
14 For purposes of this subsection, "licensed operator" shall mean an
15 individual who obtains a license from the Service Oklahoma Operator
16 Board to operate a designated Service Oklahoma location and offers
17 third-party fulfillment of designated services to be rendered by
18 Service Oklahoma.

19 R. Notwithstanding the provisions of Section 1104 of this title
20 and subsection Q of this section and except as provided in
21 subsections H and M of this section, the first Sixty Thousand
22 Dollars (\$60,000.00) of all monies collected pursuant to this
23 section shall be paid by the Oklahoma Tax Commission to the State
24

1 Treasurer to be deposited in the General Revenue Fund of the State
2 Treasury.

3 The next Five Hundred Thousand Dollars (\$500,000.00) of monies
4 collected pursuant to this section shall be paid by the Tax
5 Commission to the State Treasurer to be deposited each fiscal year
6 under the provisions of this section to the credit of the Department
7 of Public Safety Restricted Revolving Fund for the purpose of the
8 Oklahoma Law Enforcement Telecommunications System. All other
9 monies collected in excess of Five Hundred Sixty Thousand Dollars
10 (\$560,000.00) each fiscal year shall be apportioned as provided in
11 Section 1104 of this title, except as otherwise provided in this
12 section.

13 S. Service Oklahoma shall retain the images displayed on
14 licenses and identification cards issued pursuant to the provisions
15 of Sections 6-101 through 6-309 of this title which may be used
16 only:

17 1. By a law enforcement agency for purposes of criminal
18 investigations, missing person investigations or any law enforcement
19 purpose which is deemed necessary by the Commissioner of Public
20 Safety;

21 2. By the driver licensing agency of another state for its
22 official purpose; and

23 3. As provided in Section 2-110 of this title.
24

1 All agencies approved by the Oklahoma Law Enforcement
2 Telecommunications System (OLETS) or the National Law Enforcement
3 Telecommunications System (NLETS) to receive photographs or
4 computerized images may obtain them through OLETS or through NLETS.
5 Photographs or computerized images may be obtained by law
6 enforcement one inquiry at a time.

7 The computer system and related equipment acquired for this
8 purpose must conform to industry standards for interoperability and
9 open architecture. The Department of Public Safety may promulgate
10 rules to implement the provisions of this subsection.

11 T. No person may hold more than one state-issued or territory-
12 issued ~~REAL ID Compliant Driver License~~ driver license or ~~REAL ID~~
13 ~~Compliant Identification Card~~ identification card from Oklahoma or
14 any other state or territory. Service Oklahoma shall not issue a
15 ~~REAL ID Compliant Driver License~~ driver license to a person who has
16 been previously issued a ~~REAL ID Compliant Driver License~~ driver
17 license or ~~REAL ID Compliant Identification Card~~ identification card
18 until such license or identification card has been surrendered to
19 Service Oklahoma by the applicant. Provided, any person who holds
20 both a driver license and identification card from Oklahoma as of
21 November 1, 2025, may continue to possess both credentials until the
22 first expiration of either credential. At that time, the person
23 shall be allowed to retain, replace, or renew either the driver
24 license or identification card and shall surrender the second

1 credential to Service Oklahoma. Service Oklahoma may promulgate
2 rules related to the issuance of replacement REAL ID Compliant
3 Driver Licenses in the event of loss or theft.

4 U. Beginning May 24, 2021, and ending on June 30, 2023, in
5 addition to the amounts provided in subsection Q of this section, a
6 licensed operator shall receive Five Dollars (\$5.00) for each
7 processed application for a REAL ID Compliant 4-year Driver License
8 and Ten Dollars (\$10.00) for each processed application for a REAL
9 ID Compliant 8-year Driver License. Any additional amounts provided
10 pursuant to this subsection shall not be retained by Service
11 Oklahoma.

12 SECTION 4. AMENDATORY 47 O.S. 2021, Section 6-105.3, as
13 last amended by Section 42, Chapter 452, O.S.L. 2024 (47 O.S. Supp.
14 2024, Section 6-105.3), is amended to read as follows:

15 Section 6-105.3. A. In addition to the licenses to operate
16 motor vehicles, Service Oklahoma may issue cards to Oklahoma
17 residents for purposes of identification only. The identification
18 cards shall be issued, renewed, replaced, canceled and denied in the
19 same manner as driver licenses in this state. Provided, any person
20 who holds both a driver license and identification card from
21 Oklahoma as of November 1, 2025, may continue to possess both
22 credentials until the first expiration of either credential. At
23 that time, the person shall be allowed to retain, replace, or renew
24 either the driver license or identification card and shall surrender

1 the second credential to Service Oklahoma. A licensee whose record
2 reflects a notation of the person's proof of legal presence,
3 verified by the U.S. Department of Homeland Security, or proof of
4 U.S. citizenship, may obtain a REAL ID Compliant Identification Card
5 or a Noncompliant Identification Card from a licensed operator or
6 Service Oklahoma, regardless of the status of the license held by
7 the licensee. Provided, the licensee must comply with all REAL ID
8 documentation requirements to obtain a REAL ID Compliant
9 Identification Card. A person shall not apply for or possess more
10 than one state-issued or territory-issued REAL ID Compliant
11 Identification Card pursuant to the provisions of Section 6-101 of
12 this title.

13 The application for an identification card by any person under
14 the age of eighteen (18) years shall be signed and verified by a
15 custodial legal parent or legal guardian, either in person before a
16 person authorized to administer oaths or electronically if
17 completing an online application, or a notarized affidavit signed by
18 a custodial legal parent or legal guardian submitted before a person
19 authorized to administer oaths by the person under the age of
20 eighteen (18) years with the application. Except as otherwise
21 provided in this section, the identification cards shall be valid
22 for a period of either four (4) years from the month of issuance or
23 eight (8) years from the month of issuance; however, the
24

1 identification cards issued to persons sixty-five (65) years of age
2 or older shall be valid indefinitely from the month of issuance.

3 B. 1. The Department of Corrections shall coordinate with
4 Service Oklahoma to provide REAL ID Noncompliant Identification
5 Cards to all inmates who do not have a current state-issued
6 identification card or driver license upon their release from
7 custody. The identification cards shall be issued, replaced,
8 canceled and denied in the same manner as driver licenses in this
9 state.

10 2. Service Oklahoma shall allow the use of a certified copy of
11 a birth certificate coupled with a Department of Corrections-issued
12 consolidated record card to serve as a valid form of photo
13 identification documentation to obtain a REAL ID Noncompliant
14 Identification Card.

15 3. REAL ID Noncompliant Identification Cards issued with a
16 consolidated record card from the Department of Corrections for
17 inmates shall be valid for a period of four (4) years from the month
18 of issuance for an allowable fee to be determined by Service
19 Oklahoma and are nonrenewable and nontransferable.

20 4. The fee charged for the issuance or replacement of a REAL ID
21 Noncompliant Identification Card pursuant to this subsection shall
22 be deposited in the Department of Public Safety Revolving Fund
23 through October 31, 2022. Beginning November 1, 2022, this fee
24 shall be deposited in the Service Oklahoma Revolving Fund.

1 Provided, however, REAL ID Noncompliant Identification Cards issued
2 to individuals required to register pursuant to the Sex Offenders
3 Registration Act shall only be valid for a period of one (1) year.
4 No person sixty-five (65) years of age or older shall be charged a
5 fee for a REAL ID Noncompliant Identification Card.

6 5. Service Oklahoma is authorized to promulgate rules and
7 procedures to implement the provisions of this subsection.

8 C. No person shall hold more than one state-issued or
9 territory-issued ~~REAL ID Compliant Driver License~~ driver license or
10 ~~REAL ID Compliant Identification Card~~ identification card, as
11 defined in subsection G of Section 6-101 of this title. Service
12 Oklahoma shall not issue a ~~REAL ID Compliant Identification Card~~ an
13 identification card to any applicant who has been previously issued
14 a ~~REAL ID Compliant Driver License~~ driver license or ~~REAL ID~~
15 ~~Compliant Identification Card~~ identification card unless such
16 license or identification card has been surrendered to ~~the~~
17 ~~Department~~ Service Oklahoma by the applicant. Provided, any person
18 who holds both a driver license and identification card from
19 Oklahoma as of November 1, 2025, may continue to possess both
20 credentials until the first expiration of either credential. At
21 that time, the person shall be allowed to retain, replace, or renew
22 either the driver license or identification card and shall surrender
23 the second credential to Service Oklahoma. Service Oklahoma may
24

1 promulgate rules related to the issuance of replacement REAL ID
2 Compliant Identification Cards in the event of loss or theft.

3 D. The fee charged for the issuance or renewal of a REAL ID
4 Compliant Identification Card shall be Twenty-five Dollars (\$25.00)
5 for a 4-year card and Fifty Dollars (\$50.00) for an 8-year card.
6 The fee charged for the issuance or renewal of a REAL ID
7 Noncompliant Identification Card pursuant to this section shall be
8 Twenty-five Dollars (\$25.00) for a 4-year card and Fifty Dollars
9 (\$50.00) for an 8-year card; however, no person sixty-five (65)
10 years of age or older, or one hundred percent (100%) disabled
11 veteran described in subsection P of Section 6-101 of this title
12 shall be charged a fee for an identification card. Of each fee
13 charged pursuant to the provisions of this subsection:

14 1. Seven Dollars (\$7.00) of a 4-year card and Fourteen Dollars
15 (\$14.00) of an 8-year card shall be apportioned as provided in
16 Section 1104 of this title;

17 2. Three Dollars (\$3.00) of a 4-year card and Six Dollars
18 (\$6.00) of an 8-year card shall be credited to the Department of
19 Public Safety Computer Imaging System Revolving Fund to be used
20 solely for the purpose of the administration and maintenance of the
21 computerized imaging system of the Department through October 31,
22 2022. Beginning November 1, 2022, Three Dollars (\$3.00) of a 4-year
23 card and Six Dollars (\$6.00) of an 8-year card shall be credited to
24 the Service Oklahoma Computer Imaging System Revolving Fund to be

1 used solely for the purpose of administration and maintenance of the
2 computerized imaging system of Service Oklahoma;

3 3. Ten Dollars (\$10.00) of a 4-year card and Twenty Dollars
4 (\$20.00) of an 8-year card shall be deposited in the Department of
5 Public Safety Revolving Fund through October 31, 2022. Beginning
6 November 1, 2022, this fee shall be deposited in the Service
7 Oklahoma Revolving Fund;

8 4. Three Dollars (\$3.00) of a 4-year card and Six Dollars
9 (\$6.00) of an 8-year card shall be deposited to the State Public
10 Safety Fund created in Section 2-147 of this title; and

11 5. Two Dollars (\$2.00) for a 4-year card and Four Dollars
12 (\$4.00) for an 8-year card of the fee authorized by this subsection
13 related to the issuance or renewal of an identification card by a
14 licensed operator that does process approved applications or
15 renewals for REAL ID Compliant and REAL ID Noncompliant Driver
16 Licenses or Identification Cards shall be retained by the licensed
17 operator pursuant to subsection E of Section 1141.1 of this title.

18 E. The fee charged for replacement of a REAL ID Compliant
19 Identification Card, or REAL ID Noncompliant Identification Card,
20 shall be Twenty-five Dollars (\$25.00); however, no person sixty-five
21 (65) years of age or older shall be charged a fee for an
22 identification card replacement. Of each fee charged pursuant to
23 the provisions of this subsection:
24

1 1. Seven Dollars (\$7.00) shall be apportioned as provided in
2 Section 1104 of this title;

3 2. Three Dollars (\$3.00) shall be credited to the Department of
4 Public Safety Computer Imaging System Revolving Fund to be used
5 solely for the purpose of the administration and maintenance of the
6 computerized imaging system of the Department through October 31,
7 2022. Beginning November 1, 2022, Three Dollars (\$3.00) shall be
8 credited to the Service Oklahoma Computer Imaging System Revolving
9 Fund to be used solely for the purpose of administration and
10 maintenance of the computerized imaging system of Service Oklahoma;

11 3. Ten Dollars (\$10.00) shall be deposited in the Department of
12 Public Safety Revolving Fund through October 31, 2022. Beginning
13 November 1, 2022, this fee shall be deposited in the Service
14 Oklahoma Revolving Fund;

15 4. Three Dollars (\$3.00) shall be deposited to the State Public
16 Safety Fund created in Section 2-147 of this title; and

17 5. Two Dollars (\$2.00) of the fee authorized by this subsection
18 related to the replacement of an identification card by a licensed
19 operator that does process approved applications or renewals for
20 REAL ID Compliant or REAL ID Noncompliant Driver Licenses or
21 Identification Cards shall be retained by the licensed operator
22 pursuant to subsection E of Section 1141.1 of this title.

23 F. The Oklahoma Tax Commission is hereby authorized to
24 reimburse, from funds available to that agency, each licensed

1 operator issuing an identification card to a person sixty-five (65)
2 years of age or older, an amount not to exceed One Dollar (\$1.00)
3 for each card or driver license so issued through June 30, 2023.
4 The Tax Commission shall develop procedures for claims for
5 reimbursement.

6 G. Notwithstanding any other provision of law, when a person
7 makes application for a new identification card, or makes
8 application to renew an identification card, and the person has been
9 convicted of, or received a deferred judgment for, any offense
10 required to register pursuant to the Sex Offenders Registration Act,
11 the identification card shall be valid for a period of one (1) year
12 from the month of issuance, but may be renewed yearly during the
13 time the person is subject to registration on the Sex Offender
14 Registry. The cost for such identification card shall be the same
15 as for other identification cards and renewals.

16 H. Nothing in this section requires or authorizes the
17 Department of Public Safety to issue a REAL ID Noncompliant
18 Identification Card without the documentation required by the
19 provisions of paragraph 9 of subsection A of Section 6-103 of this
20 title.

21 SECTION 5. AMENDATORY 47 O.S. 2021, Section 6-111, as
22 last amended by Section 46, Chapter 452, O.S.L. 2024 (47 O.S. Supp.
23 2024, Section 6-111), is amended to read as follows:

24

1 Section 6-111. A. 1. Service Oklahoma shall, upon payment of
2 the required fee, issue to every applicant qualifying therefor a
3 Class A, B, C or D driver license or identification card as applied
4 for, which license or card shall bear thereon a distinguishing
5 alphanumeric identification assigned to the licensee or cardholder,
6 date of issuance and date of expiration of the license or card, the
7 full legal name, signature or computerized signature, date of birth,
8 residence address, unless specified as an exception in the Code of
9 Federal Regulations per 6 C.F.R., Section 37.17, sex, a computerized
10 ~~color~~ image of the licensee or cardholder taken in accordance with
11 Service Oklahoma rules and security features as determined by
12 Service Oklahoma. The image shall depict a full front unobstructed
13 view of the entire face of the licensee or cardholder; provided, a
14 commercial learner permit shall not bear the image of the licensee.
15 ~~When any person is issued both a driver license and an~~
16 ~~identification card, Service Oklahoma shall ensure the information~~
17 ~~on both the license and the card are the same, unless otherwise~~
18 ~~provided by law.~~

19 2. A driver license or identification card issued by Service
20 Oklahoma on or after March 1, 2004, shall bear thereon the county of
21 residence of the licensee or cardholder.

22 3. Service Oklahoma may cancel the distinguishing number, when
23 that distinguishing number is another person's Social Security
24 number, assign a new distinguishing alphanumeric identification, and

1 issue a new license or identification card without charge to the
2 licensee or cardholder.

3 4. Service Oklahoma may promulgate rules for inclusion of the
4 height and a brief description of the licensee or cardholder on the
5 face of the card or license identifying the licensee or cardholder
6 as deaf or hard-of-hearing.

7 5. It is unlawful for any person to apply, adhere, or otherwise
8 attach to a driver license or identification card any decal,
9 sticker, label, or other attachment. Any law enforcement officer is
10 authorized to remove and dispose of any unlawful decal, sticker,
11 label, or other attachment from the driver license of a person. The
12 law enforcement officer, the employing agency of the officer,
13 Service Oklahoma, and the State of Oklahoma shall be immune from any
14 liability for any loss suffered by the licensee, cardholder, or the
15 owner of the decal, sticker, label, or other attachment caused by
16 the removal and destruction of the decal, sticker, label, or other
17 attachment. Nothing in this section shall prohibit Service Oklahoma
18 from adopting, applying, adhering, or otherwise attaching decals,
19 stickers, labels, or other attachments to a driver license or
20 identification card.

21 6. Service Oklahoma may develop by rule a procedure which
22 complies with the provisions of subsection G of Section 6-101 of
23 this title whereby a person may apply for a renewal or replacement
24 Oklahoma Class D license or Oklahoma identification card.

1 B. 1. Service Oklahoma may issue or authorize the issuance of
2 a temporary permit or license to an applicant for a driver license
3 permitting such applicant to operate a motor vehicle while Service
4 Oklahoma is completing its investigation and determination of all
5 facts relative to such applicant's privilege to receive a license,
6 or while a permanent driver license is being produced and delivered
7 to the applicant. Such permit or license must be in the immediate
8 possession of the driver while operating a motor vehicle, and it
9 shall be invalid when the applicant's permanent driver license has
10 been issued and delivered or for good cause has been refused.

11 2. Service Oklahoma may issue or authorize the issuance of a
12 temporary identification card to an applicant, permitting the holder
13 the privileges otherwise granted by identification cards, while a
14 permanent driver license is being provided and delivered to the
15 applicant. Such card shall be invalid when the applicant's
16 permanent identification card has been issued and delivered, or for
17 good cause has been refused.

18 C. 1. Service Oklahoma may issue a restricted commercial
19 driver license to drivers eighteen (18) years of age or older for
20 any of the following specific farm-related service industries:

- 21 a. farm retail outlets and suppliers,
- 22 b. agri-chemical businesses,
- 23 c. custom harvesters, and
- 24 d. livestock feeders.

1 The applicant shall have held a valid driver license for at
2 least one (1) year. Applicants with more than two (2) years of
3 driving experience shall have a good driving record for the most
4 recent ~~two (2) year~~ two-year period and shall meet all the
5 requirements for a commercial driver license. The restricted
6 commercial driver license shall not exceed the maximum total days
7 that federal law allows. Applicants for the restricted commercial
8 driver license shall be exempt from the knowledge and skills test.
9 Application of the restricted commercial driver license does not
10 have to be used in consecutive days. The use of the permit shall be
11 declared at application.

12 2. A "good driving record" as used in this subsection shall
13 mean an applicant:

- 14 a. has not had more than one license,
- 15 b. has not had any license suspended, revoked, or
16 canceled,
- 17 c. has not had any conviction for any type of
18 disqualifying offenses or serious traffic violations,
19 or
- 20 d. has not had any conviction for a violation of state or
21 local law relating to motor vehicle traffic control,
22 other than a parking violation, arising in connection
23 with any traffic accident and has no record of an
24 accident in which they are at fault.

1 3. The restricted commercial driver license shall not be valid
2 for operators of commercial motor vehicles beyond one hundred fifty
3 (150) miles from the place of business or the farm currently being
4 served. Such license shall be limited to Class B or C vehicles.
5 Holders of such licenses who transport hazardous materials which are
6 required to be placarded shall be limited to the following:

7 a. diesel fuel in quantities of one thousand (1,000)
8 gallons or less,

9 b. liquid fertilizers in vehicles with total capacities
10 of three thousand (3,000) gallons or less, and

11 c. solid fertilizers that are not mixed with any organic
12 substance.

13 No other placarded hazardous materials shall be transported by
14 holders of such licenses.

15 D. Service Oklahoma may issue a non-domiciled commercial
16 learner permit or a non-domiciled commercial driver license.

17 A person applying for such permit or license must comply with
18 all testing and licensing requirements in accordance with applicable
19 federal regulations, state laws and Service Oklahoma rules. The
20 issued license shall be valid until the expiration of the visa for
21 the non-domiciled worker. Service Oklahoma may promulgate rules for
22 the implementation of the process to carry out the provisions of
23 this section.
24

1 E. 1. Service Oklahoma shall develop a procedure whereby a
2 person applying for an original, renewal or replacement Class A, B,
3 C or D driver license or identification card who is required to
4 register as a convicted sex offender with the Department of
5 Corrections pursuant to the provisions of the Sex Offenders
6 Registration Act and who the Department of Corrections designates as
7 an aggravated or habitual offender pursuant to subsection J of
8 Section 584 of Title 57 of the Oklahoma Statutes shall be issued a
9 license or card bearing the words "Sex Offender".

10 2. Service Oklahoma shall notify every person subject to
11 registration under the provisions of Section 1-101 et seq. of this
12 title who holds a current Class A, B, C or D driver license or
13 identification card that such person is required to surrender the
14 license or card to Service Oklahoma within one hundred eighty (180)
15 days from the date of the notice.

16 3. Upon surrendering the license or card for the reason set
17 forth in this subsection, application may be made with Service
18 Oklahoma for a replacement license or card bearing the words "Sex
19 Offender".

20 4. Failure to comply with the requirements set forth in such
21 notice shall result in cancellation of the person's license or card.
22 Such cancellation shall be in effect for one (1) year, after which
23 time the person may make application with Service Oklahoma for a new
24 license or card bearing the words "Sex Offender". Continued use of

1 a canceled license or card shall constitute a misdemeanor and shall,
2 upon conviction thereof, be punishable by a fine of not less than
3 Twenty-five Dollars (\$25.00), nor more than Two Hundred Dollars
4 (\$200.00). When an individual is no longer required to register as
5 a convicted sex offender with the Department of Corrections pursuant
6 to the provisions of the Sex Offenders Registration Act, the
7 individual shall be eligible to receive a driver license or
8 identification card which does not bear the words "Sex Offender".

9 F. Nothing in subsection E of this section shall be deemed to
10 impose any liability upon or give rise to a cause of action against
11 any employee, agent or official of the Department of Corrections for
12 failing to designate a sex offender as an aggravated or habitual
13 offender pursuant to subsection J of Section 584 of Title 57 of the
14 Oklahoma Statutes.

15 G. A person subject to an order for the installation of an
16 ignition interlock device shall be required by Service Oklahoma to
17 submit his or her driver license for a replacement. The replacement
18 driver license shall bear the words "Interlock Required" and such
19 designation shall remain on the driver license for the duration of
20 the order requiring the ignition interlock device. The replacement
21 license shall be subject to the same expiration and renewal
22 procedures provided by law. Upon completion of the requirements for
23 the interlock device, a person may apply for a replacement driver
24 license.

1 H. Service Oklahoma shall develop a procedure whereby a person
2 applying for an original, renewal or replacement Class D driver
3 license who has been granted modified driving privileges under this
4 title shall be issued a Class D driver license which identifies the
5 license as a modified license.

6 SECTION 6. AMENDATORY 47 O.S. 2021, Section 6-115, as
7 amended by Section 55, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024,
8 Section 6-115), is amended to read as follows:

9 Section 6-115. A. Except as otherwise provided in this
10 section, every driver license shall be issued for a period of either
11 four (4) years or eight (8) years; provided, if the applicant or
12 licensee is an alien, the license shall be issued for a period which
13 does not exceed the lesser of:

14 1. Four (4) years or eight (8) years; or

15 2. The expiration date on the valid documentation authorizing
16 the presence of the applicant or licensee in the United States, as
17 required by paragraph 9 of subsection A of Section 6-103 of this
18 title.

19 B. Except as otherwise provided in this section, the expiration
20 date of an initial license shall be no more than either four (4)
21 years or eight (8) years from the last day of the month of issuance
22 or no more than either four (4) years or eight (8) years from the
23 last day of the birth month of the applicant immediately preceding
24 the date of issuance, if requested by the applicant.

1 C. Except as otherwise provided in this section, the expiration
2 date of a renewal license shall be:

3 1. For a renewal during the month of expiration, either four
4 (4) years or eight (8) years from the last day of the month of
5 expiration of the expiring license or either four (4) or eight (8)
6 years from the last day of the birth month of the licensee
7 immediately preceding the expiration date of the expiring license,
8 if requested by the licensee; or

9 2. For a renewal prior to the month of expiration, as provided
10 by rule of Service Oklahoma, either four (4) or eight (8) years from
11 the last day of the month of expiration of the current license;
12 provided, no license shall be issued with an expiration date of more
13 than five (5) years from the date of renewal on a four (4) year
14 license or nine (9) years from the date of renewal on an eight (8)
15 year license.

16 D. Notwithstanding the provisions of subsection E of Section
17 1550.42 of Title 21 of the Oklahoma Statutes, any Oklahoma driver
18 license that is not more than ~~one (1) year~~ three (3) years past the
19 date of expiration provided on the driver license shall be presumed
20 to be a valid form of identification for the purposes of renewing an
21 Oklahoma driver license.

22 E. Except as otherwise provided in this section, every driver
23 license shall be renewable by the licensee upon application to
24 either Service Oklahoma or a licensed operator, furnishing the

1 current mailing address of the person and payment of the required
2 fee, if the person is otherwise eligible for renewal. If the
3 licensee is an alien, the licensee shall appear before a driver
4 license examiner of Service Oklahoma and shall be issued a renewal
5 driver license for a period which does not exceed the lesser of:

6 1. Four (4) years or eight (8) years; or

7 2. The expiration date on the valid documentation authorizing
8 the presence of the applicant or licensee in the United States, as
9 required by paragraph 9 of subsection A of Section 6-103 of this
10 title.

11 F. All applicants for renewals of driver licenses who have
12 proven collision records or apparent physical defects may be
13 required to take an examination as specified by Service Oklahoma.

14 G. When a person makes application for a driver license, or
15 makes application to renew a driver license, and the person has been
16 convicted of, or received a deferred judgment for, any offense
17 required to register pursuant to the Sex Offenders Registration Act,
18 the driver license shall be valid for a period of one (1) year from
19 the month of issuance, but may be renewed yearly during the time the
20 person is registered on the Sex Offender Registry. Notwithstanding
21 any other provision of law, the cost for such license shall be the
22 same as for other driver licenses and renewals.

1 H. Service Oklahoma shall promulgate rules prescribing forms of
2 identification acceptable for the renewal of an Oklahoma driver
3 license.

4 SECTION 7. AMENDATORY 47 O.S. 2021, Section 6-116, as
5 last amended by Section 18, Chapter 310, O.S.L. 2023 (47 O.S. Supp.
6 2024, Section 6-116), is amended to read as follows:

7 Section 6-116. A. Whenever any person, after applying for or
8 receiving a driver license or identification card, shall:

9 ~~1. Change the mailing address named in such application;~~

10 ~~2.~~ Change the residence address displayed on the license or
11 card issued to the person;

12 ~~3.~~ 2. Move from the person's previous county; or

13 ~~4.~~ 3. Change the name of a licensee by marriage or otherwise,
14 such person shall apply for a replacement of the driver license or
15 identification card with Service Oklahoma in accordance with the
16 provisions of Section 6-114 of this title within ten (10) days of
17 the change.

18 B. Service Oklahoma shall not:

19 1. Change a county of residence unless the person specifically
20 notifies Service Oklahoma of such change; and

21 2. Presume that a new mailing address which is a different
22 county than the old mailing address means that the person has
23 changed his or her county of residence, and shall not change the
24 county of residence unless specifically notified of such change.

1 SECTION 8. AMENDATORY 47 O.S. 2021, Section 6-122, as
2 last amended by Section 8, Chapter 11, O.S.L. 2024 (47 O.S. Supp.
3 2024, Section 6-122), is amended to read as follows:

4 Section 6-122. Service Oklahoma may develop procedures whereby
5 driver licenses and identification cards issued under the provisions
6 of Section 6-101 et seq. of this title may be renewed or replaced by
7 the applicant by mail or online except for licenses to be renewed or
8 replaced by aliens as prescribed by subsection E of Section 6-115 of
9 this title. Any driver license or identification card issued
10 pursuant to this section shall be valid for a period ~~as prescribed~~
11 ~~in Section 6-115 of this title~~ of four (4) years from the last day
12 of the month of expiration of the current driver license or
13 identification card. Service Oklahoma shall not renew or replace a
14 driver license or identification card by mail or online unless ~~there~~
15 ~~has been an issuance, renewal or replacement driver license the~~
16 immediately preceding issuance, renewal, or replacement was done in
17 person by the applicant ~~within the last sixteen (16) years~~.

18 Provided, any person or the spouse or dependent of a person:

19 1. Who is on active duty with the Armed Forces of the United
20 States; or

21 2. Who is currently employed as a civilian contractor with the
22 Armed Forces of the United States,
23 living outside of Oklahoma and having a valid Class D driver license
24 issued by the State of Oklahoma, requiring no material change, may

1 apply for no more than three consecutive renewals or replacement of
2 such license by mail or online, in accordance with Service Oklahoma
3 rules. A fourth consecutive renewal or replacement must be done in
4 person.

5 SECTION 9. AMENDATORY 47 O.S. 2021, Section 6-124, as
6 amended by Section 63, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024,
7 Section 6-124), is amended to read as follows:

8 Section 6-124. A. As a way to honor and recognize the veterans
9 who have served our country, Service Oklahoma shall make space
10 available in ~~the upper left-hand corner of~~ a prominent location on
11 the front of the driver license and the identification card for a
12 flag emblem and the word "veteran" to be designed by Service
13 Oklahoma that will serve as a notation of veteran status. In
14 addition, no later than March 1, 2026, Service Oklahoma shall make
15 the same space available for a flag emblem and the words "veteran"
16 and "100%" to be designed by Service Oklahoma for persons who are a
17 one hundred percent (100%) disabled veteran as described in
18 subsection P of Section 6-101 of this title.

19 B. Upon application for issuance or renewal of the driver
20 license or identification card and in addition to other
21 documentation required by Service Oklahoma, persons requesting
22 either of the flag emblem emblems shall be registered with the
23 veterans registry created by the Oklahoma Department of Veterans
24 Affairs. Provided, that if the person requesting the flag emblem

1 has previously received a flag emblem pursuant to this subsection,
2 no registration with the veterans registry shall be required to
3 receive the flag emblem. Service Oklahoma shall promulgate any rule
4 necessary to implement the provisions of this section.

5 SECTION 10. AMENDATORY 47 O.S. 2021, Section 6-211, as
6 amended by Section 20, Chapter 310, O.S.L. 2023 (47 O.S. Supp. 2024,
7 Section 6-211), is amended to read as follows:

8 Section 6-211. A. Any person denied driving privileges, or
9 whose driving privilege has been canceled, denied, suspended or
10 revoked by Service Oklahoma, except where such cancellation, denial,
11 suspension or revocation is mandatory, under the provisions of
12 Section 6-205 of this title, or disqualified by Service Oklahoma,
13 under the provisions of Section 6-205.2 or 761 of this title, shall
14 have the right of appeal to the district court as hereinafter
15 provided. Proceedings before the district court shall be exempt
16 from the provisions of the Oklahoma Pleading and Discovery codes,
17 except that the appeal shall be by petition, without responsive
18 pleadings. The district court is hereby vested with original
19 jurisdiction to hear the petition.

20 B. A person whose driving privilege is denied, canceled,
21 revoked or suspended due to inability to meet standards prescribed
22 by law, or due to an out-of-state conviction or violation, or due to
23 an excessive point accumulation on the traffic record, or for an
24

1 unlawful license issued, may appeal in the county in which the
2 person resides.

3 C. Any person whose driving privilege is canceled, denied,
4 suspended or revoked may appeal to the district court in the county
5 in which the offense was committed upon which Service Oklahoma based
6 its order.

7 D. A person whose driving privilege is subject to revocation
8 pursuant to Section 753 or 754 of this title may appeal to the
9 district court in the county in which the arrest occurred relating
10 to the test refusal or test result, as shown by the records of
11 Service Oklahoma.

12 E. The petition ~~shall~~ must be filed within thirty (30) days
13 after the notice of revocation, pursuant to Section 753 or 754 of
14 this title, has been ~~served upon~~ mailed to the person by Service
15 Oklahoma pursuant to Section 2-116 of this title. The petition
16 shall contain a description of the facts and circumstances of the
17 underlying incident sufficient to determine the arresting law
18 enforcement agency ~~and~~, the date of the incident, and the date of
19 receipt of the notice. It shall be the duty of the district court
20 to enter an order setting the matter for hearing not less than
21 thirty (30) days and not more than sixty (60) days from the date the
22 petition is filed. For the purposes of this section, the hearing
23 shall include, but is not limited to, a status hearing, scheduling
24 conference, and/or other examination of the merits of the petition.

1 Nothing in this section shall require that final disposition of the
2 matter is to be completed within sixty (60) days, so long as the
3 court has conducted a hearing as set forth above. A certified copy
4 of petition and the order for hearing shall be served forthwith by
5 the petitioner to the office of Service Oklahoma by certified mail
6 at Service Oklahoma, Oklahoma City, Oklahoma.

7 F. Upon a hearing relating to a revocation or disqualification
8 pursuant to a conviction for an offense enumerated in Section 6-205,
9 6-205.2 or 761 of this title, the court shall not consider the
10 propriety or merits of the revocation or disqualification action,
11 except to correct the identity of the person convicted as shown by
12 records of Service Oklahoma.

13 ~~G. When the records of Service Oklahoma do not reflect receipt~~
14 ~~of a sworn report of a law enforcement officer stating that the~~
15 ~~officer had reasonable grounds to believe the petitioner had been~~
16 ~~driving or was in actual physical control of a motor vehicle upon~~
17 ~~the public roads, highways, streets, turnpikes, or other public~~
18 ~~place of this state while under the influence of alcohol, any other~~
19 ~~intoxicating substance, or the combined influence of alcohol and any~~
20 ~~other intoxicating substance, the court shall, upon application by~~
21 ~~Service Oklahoma, stay the appeal for one hundred eighty (180) days~~
22 ~~from the date of the arrest as alleged in the petition, or until the~~
23 ~~sworn report is received by Service Oklahoma. If the records of~~
24 ~~Service Oklahoma do not reflect receipt of the sworn report~~

1 ~~described in this subsection at the expiration of the stay, the~~
2 ~~court shall enter an order directing Service Oklahoma to take no~~
3 ~~action upon receipt of the sworn report related to the arrest as~~
4 ~~described in the petition~~ Service Oklahoma shall take no action on a
5 sworn report of a law enforcement officer not received by Service
6 Oklahoma after the expiration of one hundred eighty (180) days of
7 the arrest of the person. In no event shall a court award costs or
8 fees, including attorney fees, based upon the records of Service
9 Oklahoma that do not reflect the receipt of the sworn report as
10 described in this subsection.

11 H. The court shall take testimony and examine the facts and
12 circumstances, including all of the records on file in the office of
13 Service Oklahoma relative to the offense committed and the driving
14 record of the person, and determine from the facts, circumstances,
15 and records whether or not the petitioner is entitled to driving
16 privileges or shall be subject to the order of denial, cancellation,
17 suspension or revocation issued by Service Oklahoma. In case the
18 court finds that the order was not justified, the court may sustain
19 the appeal, vacate the order of Service Oklahoma and direct that
20 driving privileges be restored to the petitioner, if otherwise
21 eligible.

22 I. The testimony of any hearing pursuant to this section shall
23 be taken by the court stenographer and preserved for the purpose of
24 appeal and, in case Service Oklahoma files notice of appeal from the

1 order of the court as provided herein, the court shall order and
2 direct the court clerk to prepare and furnish a complete transcript
3 of all pleadings and proceedings, together with a complete
4 transcript taken at the hearing at no cost to Service Oklahoma,
5 except the cost of transcribing.

6 J. Upon Service Oklahoma's receipt of a petition challenging
7 Service Oklahoma's action against the driving privileges of any
8 person under this title, Service Oklahoma shall withhold taking the
9 action which is the subject of the appeal or stay the order which is
10 the subject of the appeal. During the pendency of the appeal,
11 Service Oklahoma shall grant or restore driving privileges to the
12 person if the person is otherwise eligible.

13 K. An appeal may be taken by the person or by Service Oklahoma
14 from the order or judgment of the district court to the Supreme
15 Court of the State of Oklahoma as otherwise provided by law.

16 SECTION 11. AMENDATORY 47 O.S. 2021, Section 15-112, as
17 amended by Section 98, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024,
18 Section 15-112), is amended to read as follows:

19 Section 15-112. A. As used in this section:

20 1. "Physician" means any person holding a valid license to
21 practice medicine and surgery, osteopathic medicine, chiropractic,
22 podiatric medicine, or optometry, pursuant to the state licensing
23 provisions of Title 59 of the Oklahoma Statutes;

24

1 2. "Physician assistant" means any person holding a valid
2 license as a physician assistant, pursuant to the state licensing
3 provisions of the Physician Assistant Act;

4 3. "Advanced registered nurse practitioner" means any person
5 who holds a current license as a registered nurse and a current
6 certificate of recognition for practice as an Advanced Registered
7 Nurse Practitioner as set forth in the Oklahoma Nursing Practice Act
8 pursuant to the state licensing provisions contained in paragraph 5
9 of Section 567.3a of Title 59 of the Oklahoma Statutes; and

10 4. "Physical disability" means an illness, disease, injury or
11 condition by reason of which a person:

- 12 a. cannot walk two hundred (200) feet without stopping to
13 rest,
 - 14 b. cannot walk without the use of or assistance from a
15 brace, cane, crutch, another person, prosthetic
16 device, wheelchair or other assistance device,
 - 17 c. is restricted to such an extent that the person's
18 forced (respiratory) expiratory volume for one (1)
19 second, when measured by spirometry, is less than one
20 (1) liter, or the arterial oxygen tension is less than
21 sixty (60) mm/hg on room air at rest,
 - 22 d. must use portable oxygen,
- 23
24

1 e. has functional limitations which are classified in
2 severity as Class III or Class IV according to
3 standards set by the American Heart Association,

4 f. is severely limited in the person's ability to walk
5 due to an arthritic, neurological or orthopedic
6 condition, or from complications due to pregnancy,

7 g. is certified legally blind, or is missing one or more
8 limbs.

9 B. Service Oklahoma shall issue a detachable placard indicating
10 physical disability to any person who submits an application on a
11 form furnished by Service Oklahoma and certified by a physician,
12 physician assistant, or advanced registered nurse practitioner
13 attesting that the applicant has a physical disability. The
14 attestation of the physician, physician assistant, or advanced
15 registered nurse practitioner shall denote "temporary" as the type
16 of placard requested and shall indicate an expiration date which the
17 physician, physician assistant, or advanced registered nurse
18 practitioner estimates to be the date of termination of such
19 physical disability; however, if the physician, physician assistant,
20 or advanced registered nurse practitioner certifies that the
21 physical disability is permanent, the physician, physician
22 assistant, or advanced registered nurse practitioner shall denote
23 "five-year" as the type of placard requested.

1 C. Any placard issued by Service Oklahoma shall remain valid
2 until:

3 1. The placard expires;

4 2. The person to whom the placard was issued requests a
5 replacement placard; or

6 3. The placard is no longer needed by the person to whom the
7 placard was issued for the disability for which the placard was
8 originally issued, whereupon such placard shall be returned to
9 Service Oklahoma.

10 D. 1. A five-year placard shall expire five (5) years from the
11 last day of the month in which the placard was issued. Upon the
12 expiration of a five-year placard, the person to whom such placard
13 was issued may obtain a subsequent placard by reapplying to Service
14 Oklahoma, in the same manner as provided in subsection B of this
15 section.

16 2. A temporary placard shall indicate the expiration date which
17 the physician, physician assistant, or advanced registered nurse
18 practitioner certifying the physical disability estimates to be the
19 date of termination of such physical disability, which shall not be
20 later than six (6) months from the date of issuance and upon which
21 date such placard shall expire and shall be returned to Service
22 Oklahoma; provided, however, nothing in this paragraph shall be
23 construed to prevent the holder from applying for another placard,
24 as provided for in this section.

1 3. In the event that a placard is lost or destroyed, the person
2 to whom such placard was issued may apply in writing to Service
3 Oklahoma for a replacement placard, which Service Oklahoma shall
4 issue with the same expiration date as the original placard.

5 4. On and after January 1, 1998, all placards issued prior to
6 October 31, 1990, shall expire on the last day of the month in which
7 the placard was issued, and the person to whom such placard was
8 issued may follow the procedure provided for in subsection B of this
9 section to obtain a second or subsequent placard.

10 5. On and after January 1, 2000, all placards issued between
11 November 1, 1990, and June 30, 1995, shall expire on the last day of
12 the birth month of the person to whom the placard was issued, and
13 the person to whom such placard was issued may follow the procedure
14 provided for in subsection B of this section to obtain a second or
15 subsequent placard.

16 E. A physician, physician assistant, or advanced registered
17 nurse practitioner may sign an application certifying that a person
18 has a physical disability, as provided in subsection B of this
19 section, only if care and treatment of the illness, disease, injury
20 or condition causing the physical disability of such person falls
21 within the authorized scope of practice of the physician or
22 physician assistant, or advanced registered nurse practitioner.

23 F. Service Oklahoma shall have the power to formulate, adopt
24 and promulgate rules as may be necessary to implement and administer

1 the provisions of this section, including, but not limited to,
2 prescribing the manner in which the placard is to be displayed on a
3 motor vehicle.

4 G. All applications and information submitted in conjunction
5 with an application for a placard are confidential and Service
6 Oklahoma shall not be required to release to any person,
7 applications, or placard information, in whole or in part and in any
8 format, except as otherwise provided for in this subsection.
9 Information contained on the application, including personally
10 identifiable information, shall only be released for the following
11 purposes:

12 1. For use by a law enforcement agency in carrying out its
13 functions, specifically including parking enforcement; and

14 2. For use in connection with any civil, criminal, or
15 administrative proceeding in any federal, state, or local court or
16 agency.

17 H. Nothing in this section shall prohibit the issuance of a
18 temporary placard to a pregnant woman whose condition, as determined
19 by a physician, physician assistant, or advanced registered nurse
20 practitioner, meets one or more of the categories described in
21 paragraph 4 of subsection A of this section.

22 SECTION 12. AMENDATORY 47 O.S. 2021, Section 156, as
23 last amended by Section 53, Chapter 452, O.S.L. 2024 (47 O.S. Supp.
24 2024, Section 156), is amended to read as follows:

1 Section 156. A. Unless otherwise provided for by law, no state
2 board, commission, department, institution, official, or employee,
3 except the following, shall purchase any passenger automobile or bus
4 with public funds:

- 5 1. The Department of Public Safety;
- 6 2. The Department of Human Services;
- 7 3. The State Department of Rehabilitation Services;
- 8 4. The Department of Wildlife Conservation;
- 9 5. The Department of Corrections;
- 10 6. The State Department of Education;
- 11 7. The Oklahoma School of Science and Mathematics;
- 12 8. The Oklahoma State Bureau of Narcotics and Dangerous Drugs
13 Control;
- 14 9. The Oklahoma State Bureau of Investigation;
- 15 10. The Transportation Commission;
- 16 11. The Oklahoma Department of Agriculture, Food, and Forestry;
- 17 12. The State Department of Health;
- 18 13. The Department of Mental Health and Substance Abuse
19 Services;
- 20 14. The J.D. McCarty Center for Children with Developmental
21 Disabilities;
- 22 15. The Military Department of the State of Oklahoma;
- 23 16. The Oklahoma Tourism and Recreation Department;
- 24 17. The Oklahoma Conservation Commission;

18. The Oklahoma Water Resources Board;
19. The Department of Mines;
20. The Office of Juvenile Affairs;
21. The Oklahoma Department of Veterans Affairs;
22. The Oklahoma Supreme Court;
23. The District Attorneys Council and Oklahoma district attorneys, provided adequate funding exists;
24. The Oklahoma Boll Weevil Eradication Organization;
25. The Oklahoma Horse Racing Commission;
26. The Council on Law Enforcement Education and Training; ~~and~~
27. The Office of the Attorney General; and
28. Service Oklahoma.

B. 1. The Oklahoma School for the Deaf at Sulphur, the Oklahoma School for the Blind at Muskogee, and any state institution of higher education may purchase, own, or keep if now owned, or acquire by lease or gift, and use and maintain such station wagons, automobiles, trucks, or buses as are reasonably necessary for the implementation of the educational programs of said institutions.

2. No bus operated, owned, or used by such educational institutions shall be permitted to carry any person other than students, faculty members, employees, or volunteers of such institutions. The provisions of this section shall not be construed to prohibit:

1 a. the operation of intracampus buses or buses routed
2 directly between portions of the campus of any
3 institution not adjacent to each other, nor to
4 prohibit the collection of fares from such students,
5 faculty members, or employees of such institutions,
6 sufficient in amount to cover the reasonable cost of
7 such transportation, or

8 b. the Oklahoma School for the Blind or the Oklahoma
9 School for the Deaf from entering into agreements with
10 local public school districts pursuant to the
11 Interlocal Cooperation Act for the mutual use of the
12 schools' and the districts' vehicles. Such use may
13 include, but is not limited to, the transportation of
14 students from local school districts with students
15 from the Oklahoma School for the Blind or the Oklahoma
16 School for the Deaf in vehicles owned by the Oklahoma
17 School for the Blind or the Oklahoma School for the
18 Deaf when traveling to school-related activities.

19 C. The J.D. McCarty Center for Children with Developmental
20 Disabilities, the Oklahoma Department of Libraries, the Oklahoma
21 Department of Veterans Affairs, and the Oklahoma Veterans Centers
22 may own and maintain such passenger vehicles as those institutions
23 have acquired prior to May 1, 1981.

1 D. The use of station wagons, automobiles, and buses, other
2 than as provided for in this section, shall be permitted only upon
3 written request for such use by heads of departments of the
4 institution, approved in writing by the president of said
5 institution or by some administrative official of said institution
6 authorized by the president to grant said approval. Such use shall
7 be permitted only for official institutional business or activities
8 connected therewith. Such use shall be subject to the provisions of
9 Section 156.1 of this title forbidding personal use of such
10 vehicles, and to the penalties therein declared.

11 E. Any person convicted of violating the provisions of this
12 section shall be guilty of a misdemeanor and shall be punished by
13 fine or imprisonment, or both, as provided for in Section 156.1 of
14 this title.

15 F. For the purpose of this section and Section 156.3 of this
16 title, a station wagon is classified as a passenger automobile and
17 may not be purchased solely for the use of transporting property.
18 Such vehicles shall include, but not be limited to, all vehicles
19 which have no separate luggage compartment or trunk but which do not
20 have open beds, whether the same are called station wagons, vans,
21 suburbans, town and country, blazers, or any other names. All state
22 boards, commissions, departments, and institutions may own and
23 maintain station wagons purchased solely for the purpose of
24 transporting property if acquired prior to July 1, 1985.

1 G. The provisions of this section and Section 156.1 of this
2 title shall not apply to public officials who are statewide elected
3 commissioners.

4 SECTION 13. AMENDATORY 47 O.S. 2021, Section 752, as
5 amended by Section 22, Chapter 310, O.S.L. 2023 (47 O.S. Supp. 2024,
6 Section 752), is amended to read as follows:

7 Section 752. A. Only a licensed medical doctor, licensed
8 osteopathic physician, licensed chiropractic physician, registered
9 nurse, licensed practical nurse, physician's assistant, certified by
10 any state's appropriate licensing authority, an employee of a
11 hospital or other health care facility authorized by the hospital or
12 health care facility to withdraw blood, or individuals licensed in
13 accordance with Section 1-2505 of Title 63 of the Oklahoma Statutes
14 as an Intermediate Emergency Medical Technician, an Advanced
15 Emergency Medical Technician or a Paramedic, acting within the scope
16 of practice prescribed by their medical director, acting at the
17 request of a law enforcement officer may withdraw blood for the
18 purpose of having a determination made of its concentration of
19 alcohol or the presence or concentration of other intoxicating
20 substance. Only qualified persons authorized by the Board may
21 collect breath, saliva or urine, or administer tests of breath under
22 the provisions of this title.

23 B. If the person authorized to withdraw blood as specified in
24 subsection A of this section is presented with a written statement:

1 1. Authorizing blood withdrawal signed by the person whose
2 blood is to be withdrawn;

3 2. Signed by a duly authorized peace officer that the person
4 whose blood is to be withdrawn has agreed to the withdrawal of
5 blood;

6 3. Signed by a duly authorized peace officer that the person
7 whose blood is to be withdrawn has been placed under arrest and that
8 the officer has probable cause to believe that the person, while
9 intoxicated, has operated a motor vehicle in such manner as to have
10 caused the death or serious physical injury of another person, or
11 the person has been involved in a traffic accident and has been
12 removed from the scene of the accident that resulted in the death or
13 great bodily injury, as defined in subsection B of Section 646 of
14 Title 21 of the Oklahoma Statutes, of any person to a hospital or
15 other health care facility outside the State of Oklahoma before the
16 law enforcement officer was able to effect an arrest for such
17 offense; or

18 4. In the form of an order from a district court that blood be
19 withdrawn, the person authorized to withdraw the blood and the
20 hospital or other health care facility where the withdrawal occurs
21 may rely on such a statement or order as evidence that the person
22 has consented to or has been required to submit to the clinical
23 procedure and shall not require the person to sign any additional
24 consent or waiver form. In such a case, the person authorized to

1 perform the procedure, the employer of such person and the hospital
2 or other health care facility shall not be liable in any action
3 alleging lack of consent or lack of informed consent.

4 C. Collection of a person's blood, to be considered valid and
5 admissible in evidence, whether performed by or at the direction of
6 a law enforcement officer or at the request of the tested person,
7 shall have been performed by a person authorized to collect blood
8 pursuant to the provisions of subsection A of this section.

9 Analysis of a person's blood, to be considered valid and admissible
10 in evidence, whether performed by or at the direction of a law
11 enforcement officer or at the request of the tested person, shall
12 have been performed by a laboratory accredited in accordance with
13 ISO/IEC 17025 as defined in Section 150.37 of Title 74 of the
14 Oklahoma Statutes.

15 D. Collection of a person's breath, to be considered valid and
16 admissible in evidence:

17 1. Shall have been performed by an individual possessing a
18 valid permit issued by the Board of Tests for Alcohol and Drug
19 Influence for this purpose;

20 2. Shall have been performed on a breath alcohol measurement
21 device appearing on the most current conforming products list of
22 such devices published by the United States Department of
23 Transportation in the Federal Register, and utilizing a calibrating
24 unit appearing on the most current conforming products list of such

1 devices published by the United States Department of Transportation
2 in the Federal Register;

3 3. Shall have been performed on a device maintained by the
4 Board of Tests for Alcohol and Drug Influence; and

5 4. Shall have been performed in accordance with the operating
6 procedure prescribed by the State Director of Tests or the Board of
7 Tests for Alcohol and Drug Influence.

8 E. No person specified in subsection A of this section, no
9 employer of such person and no hospital or other health care
10 facility where blood is withdrawn shall incur any civil or criminal
11 liability as a result of the proper withdrawal of blood when acting
12 at the request of a law enforcement officer by the provisions of
13 Section 751 or 753 of this title, or when acting in reliance upon a
14 signed statement or court order as provided in this section, if the
15 act is performed in a reasonable manner according to generally
16 accepted clinical practice. No person specified in subsection A of
17 this section shall incur any civil or criminal liability as a result
18 of the proper collection of breath, saliva or urine when acting at
19 the request of a law enforcement officer under the provisions of
20 Section 751 or 753 of this title or when acting pursuant to a court
21 order.

22 ~~D.~~ F. The blood, breath, saliva or urine specimens obtained
23 shall be tested by the appropriate test as determined by the Board,
24 or tested by a laboratory that is exempt from the Board rules

1 pursuant to Section 759 of this title, to determine the alcohol
2 concentration thereof, or the presence or concentration of any other
3 intoxicating substance which might have affected the ability of the
4 person tested to operate a motor vehicle safely.

5 ~~F.~~ G. When blood is withdrawn for testing of its alcohol
6 concentration or other intoxicating substance presence or
7 concentration, at the request of a law enforcement officer, a
8 sufficient quantity of the same specimen shall be obtained to enable
9 the tested person, at his or her own option and expense, to have an
10 independent analysis made of such specimen. The excess blood
11 specimen shall be retained by a laboratory approved by the Board in
12 accordance with the rules and regulations of the Board or by a
13 laboratory that is exempt from the Board rules pursuant to Section
14 759 of this title, for sixty (60) days from the date of collection.
15 At any time within that period, the tested person or his or her
16 attorney may direct that such blood specimen be sent or delivered to
17 a laboratory of his or her own choosing and approved by the Board
18 for an independent analysis. Neither the tested person, nor any
19 agent of such person, shall have access to the additional blood
20 specimen prior to the completion of the independent analysis, except
21 the analyst performing the independent analysis and agents of the
22 analyst.

23 ~~F.~~ H. The costs of collecting blood specimens for the purpose
24 of determining the alcohol or other intoxicating substance thereof,

1 by or at the direction of a law enforcement officer, shall be borne
2 by the law enforcement agency employing such officer; provided, if
3 the person is convicted for any offense involving the operation of a
4 motor vehicle while under the influence of or while impaired by
5 alcohol or an intoxicating substance, or both, as a direct result of
6 the incident which caused the collection of blood specimens, an
7 amount equal to the costs shall become a part of the court costs of
8 the person and shall be collected by the court and remitted to the
9 law enforcement agency bearing the costs. The cost of collecting,
10 retaining and sending or delivering to an independent laboratory the
11 excess specimens of blood for independent analysis at the option of
12 the tested person shall also be borne by such law enforcement
13 agency. The cost of the independent analysis of such specimen of
14 blood shall be borne by the tested person at whose option such
15 analysis is performed. The tested person, or his or her agent,
16 shall make all necessary arrangements for the performance of such
17 independent analysis other than the forwarding or delivery of such
18 specimen.

19 ~~G.~~ I. Tests of blood or breath for the purpose of determining
20 the alcohol concentration thereof, and tests of blood for the
21 purpose of determining the presence or concentration of any other
22 intoxicating substance therein, under the provisions of this title,
23 whether administered by or at the direction of a law enforcement
24 officer or administered independently, at the option of the tested

1 person, on the excess specimen of such person's blood to be
2 considered valid and admissible in evidence under the provisions of
3 this title, shall have been administered in accordance with Section
4 759 of this title.

5 ~~H.~~ J. Any person who has been arrested for any offense arising
6 out of acts alleged to have been committed while the person was
7 operating or in actual physical control of a motor vehicle while
8 under the influence of alcohol, any other intoxicating substance or
9 the combined influence of alcohol and any other intoxicating
10 substance who is not requested by a law enforcement officer to
11 submit to a test shall be entitled to have an independent test of
12 his or her blood for the purpose of determining its alcohol
13 concentration or the presence or concentration of any other
14 intoxicating substance therein, performed by a person of his or her
15 own choosing who is qualified as stipulated in this section. The
16 arrested person shall bear the responsibility for making all
17 necessary arrangements for the administration of such independent
18 test and for the independent analysis of any specimens obtained, and
19 bear all costs thereof. The failure or inability of the arrested
20 person to obtain an independent test shall not preclude the
21 admission of other competent evidence bearing upon the question of
22 whether such person was under the influence of alcohol, or any other
23 intoxicating substance or the combined influence of alcohol and any
24 other intoxicating substance.

1 ~~F.~~ K. Any agency or laboratory certified by the Board or any
2 agency or laboratory that is exempt from the Board rules pursuant to
3 Section 759 of this title, which analyses blood shall make available
4 a written report of the results of the test administered by or at
5 the direction of the law enforcement officer to:

- 6 1. The tested person, or his or her attorney;
- 7 2. The Commissioner of Public Safety;
- 8 3. The Director of Service Oklahoma; and
- 9 4. The Fatality Analysis Reporting System (FARS) analyst of the
10 state, upon request.

11 The results of the tests provided for in this title shall be
12 admissible in all civil actions, including administrative hearings
13 regarding driving privileges.

14 SECTION 14. AMENDATORY 47 O.S. 2021, Section 759, as
15 amended by Section 1, Chapter 93, O.S.L. 2023 (47 O.S. Supp. 2024,
16 Section 759), is amended to read as follows:

17 Section 759. A. There is hereby re-created, to continue until
18 July 1, 2026, in accordance with the provisions of the Oklahoma
19 Sunset Law, the Board of Tests for Alcohol and Drug Influence to be
20 composed of the following members beginning July 1, 2015:

- 21 1. The Dean of the Oklahoma State University College of
22 Osteopathic Medicine, or a designee;
- 23 2. The Dean of the University of Oklahoma College of Medicine,
24 or a designee;

1 3. The Commissioner of Public Safety, or a designee;

2 4. The Director of the Oklahoma State Bureau of Investigation,
3 or a designee;

4 5. The State Commissioner of Health, or a designee;

5 6. The Director of the Council on Law Enforcement Education and
6 Training, or a designee;

7 7. One certified peace officer who is a member of a local law
8 enforcement agency selected by the Oklahoma Sheriffs and Peace
9 Officers Association; and

10 8. One person selected by the Oklahoma Association of Chiefs of
11 Police.

12 Members shall serve without pay other than reimbursement of
13 necessary and actual expenses as provided in the State Travel
14 Reimbursement Act. Each member shall receive an appointment in
15 writing which shall become a permanent part of the records of the
16 Board. The chair and vice-chair shall be elected from the
17 membership of the Board every two (2) years. The Board is
18 authorized to appoint a State Director of Tests for Alcohol and Drug
19 Influence and other employees, including, but not limited to,
20 persons to conduct training and provide administrative assistance as
21 necessary for the performance of its functions, subject to available
22 funding and authorized full-time equivalent employee limitations.
23 The Board may expend appropriated funds for purposes consistent with
24 Sections 751 through 761 of this title and Sections 301 through 308

1 of Title 3 of the Oklahoma Statutes. The Legislature shall
2 appropriate funds to the Department of Public Safety for the support
3 of the Board of Tests For Alcohol and Drug Influence and its
4 employees, if any. Upon the transfer of any employees from the
5 Alcohol Drug Countermeasures Unit of the Department of Public Safety
6 to the Board of Tests For Alcohol and Drug Influence on July 1,
7 2003, all funds of the Unit appropriated and budgeted shall be
8 transferred to the Board, and may be budgeted and expended to
9 support the functions and personnel of the Board.

10 B. ~~Collection of a person's blood to be considered valid and~~
11 ~~admissible in evidence, whether performed by or at the direction of~~
12 ~~a law enforcement officer or at the request of the tested person,~~
13 ~~shall have been performed by a person authorized to collect blood~~
14 ~~pursuant to the provisions of Section 752 of this title. Analysis~~
15 ~~of a person's blood to be considered valid and admissible in~~
16 ~~evidence, whether performed by or at the direction of a law~~
17 ~~enforcement officer or at the request of the tested person, shall~~
18 ~~have been performed by a laboratory accredited in accordance with~~
19 ~~ISO/IEC 17025 as defined in Section 150.37 of Title 74 of the~~
20 ~~Oklahoma Statutes.~~

21 C. ~~Collection of a person's breath, to be considered valid and~~
22 ~~admissible in evidence.~~

1 ~~1. Shall have been performed by an individual possessing a~~
2 ~~valid permit issued by the Board of Tests for Alcohol and Drug~~
3 ~~Influence for this purpose; and~~

4 ~~2. Shall have been performed on a breath alcohol measurement~~
5 ~~device appearing on the most current conforming products list of~~
6 ~~such devices published by the U.S. Department of Transportation in~~
7 ~~the Federal Register, and utilizing a calibrating unit appearing on~~
8 ~~the most current conforming products list of such devices published~~
9 ~~by the U.S. Department of Transportation in the Federal Register;~~

10 ~~3. Shall have been performed on a device maintained by the~~
11 ~~Board of Tests for Alcohol and Drug Influence; and~~

12 ~~4. Shall have been performed in accordance with the operating~~
13 ~~procedure prescribed by the State Director of Tests or the Board of~~
14 ~~Tests for Alcohol and Drug Influence.~~

15 ~~D.~~ The Board is authorized to prescribe uniform standards and
16 conditions for, and to approve satisfactory methods, procedures,
17 techniques, devices, equipment and records for, tests and analyses
18 and to prescribe and approve the requisite education and training
19 for the performance of tests or analyses of breath to determine the
20 breath alcohol concentration. The Board shall establish standards
21 for and ascertain the qualifications and competence of individuals
22 to administer tests and analyses of breath to determine the breath
23 alcohol concentration, and to issue permits to individuals which
24 shall be subject to suspension or revocation at the discretion of

1 the Board. The Board is authorized to prescribe uniform standards,
2 conditions, methods, procedures, techniques, devices, equipment and
3 records for the collection, handling, retention, storage,
4 preservation and delivery of specimens of blood, breath, saliva and
5 urine obtained for the purpose of determining the alcohol
6 concentration thereof or the presence or concentration of any other
7 intoxicating substance therein. The Board may take such other
8 actions as may be reasonably necessary or appropriate to effectuate
9 the purposes of Sections 751 through 761 of this title and Sections
10 301 through 308 of Title 3 of the Oklahoma Statutes, and may adopt,
11 amend and repeal such other rules consistent with this chapter as
12 the Board shall determine proper. The Board is authorized to
13 delegate authority granted in this section to the State Director of
14 Tests as it deems appropriate.

15 ~~E.~~ C. The Board shall promulgate rules adopting uniform
16 standards and conditions and rules approving devices, equipment,
17 methods, procedures, techniques, and records for screening tests
18 administered for the purpose of determining the presence or
19 concentration of alcohol or any other intoxicating substance in a
20 person's blood, breath, saliva or urine. Such screening tests shall
21 be performed in compliance with the rules adopted by the Board of
22 Tests for Alcohol and Drug Influence. For purposes of this
23 subsection, "screening test" means the use of devices, equipment,
24

1 methods, procedures, techniques and records by law enforcement
2 officers at roadside to assist in the development of probable cause.

3 ~~F.~~ D. The Board may set rules and charge appropriate fees for
4 operations incidental to its required duties and responsibilities.

5 ~~G.~~ E. There is hereby created in the State Treasury a revolving
6 fund for the Board of Tests for Alcohol and Drug Influence to be
7 designated the "Board of Tests for Alcohol and Drug Influence
8 Revolving Fund". The fund shall be a continuing fund, not subject
9 to fiscal year limitations, and shall consist of monies received
10 pursuant to the provisions of subsection ~~F~~ D of this section and any
11 funds previously deposited in the Board of Tests for Alcohol and
12 Drug Influence Revolving Fund. All monies accruing to the credit of
13 the fund are hereby appropriated and may be budgeted and expended by
14 the Board of Tests for Alcohol and Drug Influence for operating
15 expenses of the Board. Expenditures from the funds shall be made
16 upon warrants issued by the State Treasurer against claims filed as
17 prescribed by law with the Director of the Office of Management and
18 Enterprise Services for approval and payment.

19 SECTION 15. AMENDATORY 47 O.S. 2021, Section 1103, as
20 amended by Section 9, Chapter 47, 1st Extraordinary Session, O.S.L.
21 2023 (47 O.S. Supp. 2024, Section 1103), is amended to read as
22 follows:

23 Section 1103. A. It is the intent of the Legislature that the
24 owner or owners of every vehicle in this state shall possess a

1 certificate of title as proof of ownership and that every vehicle
2 shall be registered in the name of the owner or owners thereof. All
3 registration and license fees and mileage taxes imposed by the
4 Oklahoma Vehicle License and Registration Act shall be for the
5 purpose of providing funds for the general governmental functions of
6 the state, counties, municipalities and schools and for the
7 maintenance and upkeep of the avenues of public access of this
8 state. Such registration and license fees shall apply to every
9 vehicle operated upon, over, along or across any avenue of public
10 access within this state and when paid in full, shall be in lieu of
11 all other taxes, general and local, unless otherwise specifically
12 provided.

13 B. Unless otherwise provided, all fees to be retained by the
14 licensed operator pursuant to the Oklahoma Vehicle License and
15 Registration Act, shall be retained by the licensed operator
16 pursuant to subsection E of Section 1141.1 of this title.

17 1. This section shall apply to subsection H of Section 1105,
18 Section 1115, 1132, 1132.1, 1132.4, 1135.1, 1135.2, 1135.3,
19 subsection H of Section 1140, and Section 1151 of this title, and
20 Section 2103 of Title 68 of the Oklahoma Statutes, beginning July 1,
21 2023. Except that the five-dollar fee for the license plate issued
22 pursuant to paragraph 31 of subsection B of Section 1135.2 of this
23 title shall be retained by the licensed operator.

2. This section shall apply to subsections G, L, M, N, and R of Section 1105, Sections 1107.4, 1110, 1116, 1126, 1135.4, 1135.7, 1135.9, and 1143 of this title, and Section 4021 of Title 63 of the Oklahoma Statutes, beginning July 1, 2025.

SECTION 16. AMENDATORY 47 O.S. 2021, Section 1105A, as last amended by Section 66, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1105A), is amended to read as follows:

Section 1105A. A. On or before July 1, 2023, Service Oklahoma shall implement a program which will permit the electronic filing, storage, and delivery of motor vehicle certificates of title and allow a lienholder to perfect, assign and release a lien on a motor vehicle in lieu of submission and maintenance of paper documents as otherwise provided in the provisions of Section 1101 et seq. of this title. Service Oklahoma may:

1. Enter into a competitive contract with a qualified third-party service provider (System Developer), subject to the provisions of the Oklahoma Central Purchasing Act, Section 85.1 et seq. of Title 74 of the Oklahoma Statutes;

2. Act as the service provider; or

3. Authorize proprietary provider systems by Oklahoma financial institutions, to provide necessary hardware, software and services facilitating the interconnection between licensed operators and electronic title service providers described in subsection B of this section for a

1 certificate of title and for filing or releasing a lien pursuant to
2 the procedures prescribed by Service Oklahoma. The provisions of
3 this section shall apply to certificates of title issued and liens
4 filed after June 30, 2022. Service Oklahoma shall promulgate rules
5 to implement the provisions of this section.

6 B. The program authorized under subsection A of this section
7 shall include, but not be limited to, procedures:

8 1. For the delivery of a certificate of title, on a paper
9 document or in an electronic format, to the secured party having the
10 primary perfected security interest in a vehicle in lieu of delivery
11 to the record owner, notwithstanding the provisions of Section 1101
12 et seq. of this title. When there is no security interest, lien, or
13 other encumbrance on the vehicle, delivery of a certificate of
14 title, on a paper document or in an electronic format, shall be made
15 to the record owner. Provided, when electronic transmission of
16 liens and lien satisfactions is used, a certificate of title need
17 not be issued or printed until the last lien is satisfied and a
18 clear certificate of title is issued to the owner of the vehicle at
19 their request;

20 2. Establishing qualifications for third-party electronic title
21 service providers offering electronic lien services. The vendor
22 selected in subsection A of this section shall not be considered an
23 electronic title service provider and shall not operate or own an
24 electronic title service provider;

1 3. Establishing reasonable fees, if necessary, to be charged by
2 service providers or contractors for the establishment, maintenance
3 and operation of the electronic lien title program;

4 4. Providing access to the electronic certificate of title
5 records including liens on record, for licensed motor vehicle
6 dealers and lienholders who participate in the program
7 notwithstanding the provisions of Section 1109 of this title;

8 5. Allowing licensed operators to participate in the electronic
9 lien title program. Participating licensed operators shall receive
10 all fees provided by the Oklahoma Vehicle License and Registration
11 Act unless otherwise provided in Section 1132A of this title; and

12 6. For the acceptance and use of electronic or digital
13 signatures.

14 C. As used in this section and Section 1101 et seq. of this
15 title:

16 1. "Deliver" or "delivery" means, with respect to a certificate
17 of title or lien, either the physical delivery of a paper document
18 or the electronic delivery of a document in an electronic format;

19 2. "Electronic format" means an electronic or digital format or
20 medium of any document, record or other information; and

21 3. "Possess" or "possession" means, with respect to a
22 certificate of title or lien, to hold or otherwise exercise control
23 over a document which is in either a physical or electronic format.
24

1 D. Any documents created, stored or delivered under the
2 electronic lien title program as provided in this section shall be
3 presumed valid including any signatures which are generated
4 electronically or contained on a scanned copy. A certified copy of
5 Service Oklahoma's electronic record of a motor vehicle certificate
6 of title or lien is admissible in any civil, criminal, or
7 administrative proceeding in this state as evidence of the existence
8 and contents of the certificate of title or lien.

9 E. The Tax Commission is authorized to expend funds necessary
10 for the implementation of the program provided in subsection A of
11 this section from available monies in the Oklahoma Tax Commission
12 and Office of Management and Enterprise Services Joint Computer
13 Enhancement Fund created pursuant to Section 265 of Title 68 of the
14 Oklahoma Statutes.

15 F. In the development of the program provided in subsection A
16 of this section, the Oklahoma Tax Commission shall consult
17 interested parties including, but not limited to, representatives of
18 the Oklahoma Automobile Dealers Association, the Oklahoma Bankers
19 Association, the Credit Union Association of Oklahoma and the Tag
20 Agent Coalition.

21 G. All documents submitted electronically pursuant to the
22 provisions of subsection A of this section shall ~~not~~ require
23 ~~notarization~~ electronic verification in lieu of notarization.

1 H. All documents submitted pursuant to the provisions of this
2 section shall be retained pursuant to the provision of subsection A
3 of this section.

4 I. Submission and maintenance of paper documents as otherwise
5 provided in ~~this~~ the provisions of Section 1101 et seq. of this
6 title shall be accepted through June 30, 2025.

7 SECTION 17. AMENDATORY 47 O.S. 2021, Section 1106, as
8 amended by Section 114, Chapter 282, O.S.L. 2022 (47 O.S. Supp.
9 2024, Section 1106), is amended to read as follows:

10 Section 1106. A. 1. If Service Oklahoma ~~shall determine~~
11 determines at any time that an applicant for a certificate of title
12 of a vehicle is not entitled thereto, it may refuse to issue such
13 certificate or to register such vehicle.

14 2. a. If Service Oklahoma may for a similar reason, after
15 determines that a previously issued certificate of
16 title or registration was issued in contradiction of
17 any statutory requirement or that the applicant was
18 not entitled to such certificate or registration, it
19 may revoke such certificate of title or registration
20 by sending a notice of revocation hearing. Said
21 notice shall be mailed to the last known address
22 reflected on the motor vehicle records of Service
23 Oklahoma and must be mailed at least ten (10) ~~days~~
24 ~~notice and a hearing, revoke the registration and the~~

1 ~~certificate of title already acquired on any~~
2 ~~outstanding certificate of title. Said notice may be~~
3 ~~served in person or by registered mail~~ days prior to
4 the revocation hearing date with a certificate of
5 mailing stating the date it was mailed by Service
6 Oklahoma. Such certificate of mailing shall be
7 presumed to demonstrate compliance with the notice
8 requirement in this section.

9 b. Any person or entity to whom notice was sent pursuant
10 to this section who fails to appear at such hearing
11 may be found in default and subject to revocation of a
12 certificate of title or registration without further
13 notice or process.

14 c. The hearing shall be subject to the hearing
15 requirements in Article II of the Administrative
16 Procedures Act, Section 308a et seq. of Title 75 of
17 the Oklahoma Statutes.

18 d. Service Oklahoma may promulgate administrative code
19 rules describing the hearing process.

20 B. 1. Service Oklahoma may refuse registration and issuance of
21 a certificate of title of a commercial motor vehicle, or any
22 transfer of title and registration of a commercial motor vehicle, to
23 a commercial motor carrier whose ability to operate has been
24 terminated or denied by a federal agency.

1 2. Service Oklahoma may revoke the registration, certificate of
2 title, and license plate of a commercial motor vehicle if the
3 vehicle has been assigned to be operated by a commercial motor
4 carrier whose ability to operate has been terminated or denied by a
5 federal agency.

6 C. The Corporation Commission may revoke, suspend or deny
7 registration of and/or issuance of license plates for a commercial
8 motor vehicle licensed pursuant to the jurisdiction of the
9 Corporation Commission and whose ability to operate has been
10 terminated or denied by a state or federal agency.

11 SECTION 18. AMENDATORY 47 O.S. 2021, Section 1104, as
12 last amended by Section 1, Chapter 442, O.S.L. 2024 (47 O.S. Supp.
13 2024, Section 1104), is amended to read as follows:

14 Section 1104. A. Unless otherwise provided by law, all fees,
15 taxes, and penalties collected or received pursuant to the Oklahoma
16 Vehicle License and Registration Act or Section 1-101 et seq. of
17 this title shall be apportioned and distributed monthly by the
18 Oklahoma Tax Commission in accordance with this section. Service
19 Oklahoma shall provide to the Oklahoma Tax Commission monthly
20 reports of motor vehicle collection information, including, but not
21 limited to, motor vehicle monthly apportionment information,
22 refunds, canceled vouchers, waste tire collections, organ donor
23 program amounts, driver license records, prorate amounts, and sales
24 tax amounts. The reports shall be delivered electronically pursuant

1 to the current calendar year apportionment disbursement schedule
2 provided to Service Oklahoma by the Oklahoma Tax Commission on or
3 before December 1st annually.

4 One percent (1%) of ~~fees collected~~ the monies referred to in
5 this section shall be apportioned to the Licensed Operator
6 Performance Fund created in Section 3-106 of this title, in
7 accordance with the applicable metrics determined by Service
8 Oklahoma.

9 B. 1. The following percentages of the monies referred to in
10 subsection A of this section shall be apportioned to the various
11 school districts in accordance with paragraph 2 of this subsection:

- 12 a. from October 1, 2000, until June 30, 2001, thirty-five
13 and forty-six one-hundredths percent (35.46%),
- 14 b. for the year beginning July 1, 2001, and ending June
15 30, 2002, thirty-five and ninety-one one-hundredths
16 percent (35.91%),
- 17 c. for the year beginning July 1, 2002, through the year
18 ending on June 30, 2015, thirty-six and twenty one-
19 hundredths percent (36.20%),
- 20 d. for the year beginning July 1, 2015, through the year
21 ending on June 30, 2019, thirty-six and twenty one-
22 hundredths percent (36.20%), but in no event shall the
23 amount apportioned in any fiscal year pursuant to this
24 subparagraph exceed the total amount apportioned for

1 the fiscal year ending on June 30, 2015. Any amounts
2 in excess of such limitation shall be placed to the
3 credit of the General Revenue Fund, and
4 e. for the year beginning July 1, 2019, and all
5 subsequent years, thirty-six and twenty one-hundredths
6 percent (36.20%), but in no event shall the amount
7 apportioned in any fiscal year pursuant to this
8 subparagraph exceed the total amount apportioned for
9 the fiscal year ending on June 30, 2015. Any amounts
10 in excess of such limitation shall be placed to the
11 credit of the Rebuilding Oklahoma Access and Driver
12 Safety Fund created in Section 1521 of Title 69 of the
13 Oklahoma Statutes.

14 2. The monies apportioned pursuant to subparagraphs a through e
15 of paragraph 1 of this subsection shall be apportioned to the
16 various school districts so that each district shall receive an
17 amount based upon the proportion that each district's average daily
18 attendance bears to the total average daily attendance of those
19 districts entitled to receive funds pursuant to this section as
20 certified by the State Department of Education.

21 Each district's allocation of funds shall be remitted to the
22 county treasurer of the county wherein the administrative
23 headquarters of the district are located.

1 No district shall be eligible for the funds herein provided
2 unless the district makes an ad valorem tax levy of fifteen (15)
3 mills and maintains nine (9) years of instruction and pursuant to
4 the rules of the State Board of Education, is authorized to maintain
5 ten (10) years of instruction.

6 C. The following percentages of the monies referred to in
7 subsection A of this section shall be remitted to the State
8 Treasurer to be credited to the General Revenue Fund of the State
9 Treasury:

10 1. From October 1, 2000, until June 30, 2001, forty-five and
11 ninety-seven one-hundredths percent (45.97%);

12 2. For the year beginning July 1, 2001, and ending June 30,
13 2002, forty-five and twenty-nine one-hundredths percent (45.29%);

14 3. For the year beginning July 1, 2002, and for the subsequent
15 fiscal years ending June 30, 2007, forty-four and eighty-four one-
16 hundredths percent (44.84%);

17 4. For the year beginning July 1, 2007, and ending June 30,
18 2008, thirty-nine and eighty-four one-hundredths percent (39.84%);

19 5. For the year beginning July 1, 2008, and ending June 30,
20 2009, thirty-four and eighty-four one-hundredths percent (34.84%);

21 6. For the period beginning July 1, 2009, and ending December
22 31, 2012, twenty-nine and eighty-four one-hundredths percent
23 (29.84%);
24

1 7. For the period beginning January 1, 2013, and ending June
2 30, 2013, twenty-nine and thirty-four one-hundredths percent
3 (29.34%);

4 8. For the year beginning July 1, 2013, and ending June 30,
5 2014, twenty-six and eighty-four one-hundredths percent (26.84%);
6 and

7 9. For the year beginning July 1, 2014, through the year ending
8 June 30, 2019, twenty-four and eighty-four one-hundredths percent
9 (24.84%).

10 D. The following percentages of the monies referred to in
11 subsection A of this section shall be remitted to the State
12 Treasurer to be credited to the State Transportation Fund:

13 1. From October 1, 2000, until June 30, 2001, thirty one-
14 hundredths percent (0.30%);

15 2. For the year beginning July 1, 2001, through the year ending
16 on June 30, 2015, thirty-one one-hundredths percent (0.31%);

17 3. For the year beginning July 1, 2015, through the year ending
18 on June 30, 2019, thirty-one one-hundredths percent (0.31%), but in
19 no event shall the amount apportioned in any fiscal year pursuant to
20 this paragraph exceed the total amount apportioned for the fiscal
21 year ending on June 30, 2015. Any amounts in excess of such
22 limitation shall be placed to the credit of the General Revenue
23 Fund; and
24

1 4. For the year beginning July 1, 2019, and all subsequent
2 years, thirty-one one-hundredths percent (0.31%), but in no event
3 shall the amount apportioned in any fiscal year pursuant to this
4 paragraph exceed the total amount apportioned for the fiscal year
5 ending on June 30, 2015. Any amounts in excess of such limitation
6 shall be placed to the credit of the Rebuilding Oklahoma Access and
7 Driver Safety Fund created in Section 1521 of Title 69 of the
8 Oklahoma Statutes.

9 E. 1. The following percentages of the monies referred to in
10 subsection A of this section shall be apportioned to the various
11 counties as set forth in paragraph 2 of this subsection:

12 a. from October 1, 2000, until June 30, 2001, seven and
13 nine one-hundredths percent (7.09%),

14 b. for the year beginning July 1, 2001, and ending June
15 30, 2002, seven and eighteen one-hundredths percent
16 (7.18%),

17 c. for the year beginning July 1, 2002, through the year
18 ending on June 30, 2015, seven and twenty-four one-
19 hundredths percent (7.24%),

20 d. for the year beginning July 1, 2015, through the year
21 ending on June 30, 2019, seven and twenty-four one-
22 hundredths percent (7.24%), but in no event shall the
23 amount apportioned in any fiscal year pursuant to this
24 subparagraph exceed the total amount apportioned for

the fiscal year ending on June 30, 2015. Any amounts in excess of such limitation shall be placed to the credit of the General Revenue Fund, and

e. for the year beginning July 1, 2019, and all subsequent years, seven and twenty-four one-hundredths percent (7.24%), but in no event shall the amount apportioned in fiscal years 2019 through 2024 pursuant to this subparagraph exceed the total amount apportioned for the fiscal year ending on June 30, 2015, and in no event shall the amount apportioned in fiscal year 2026 and subsequent fiscal years exceed the amount apportioned for the fiscal year ending on June 30, 2025. Any amounts in excess of such limitation shall be placed to the credit of the Rebuilding Oklahoma Access and Driver Safety Fund created in Section 1521 of Title 69 of the Oklahoma Statutes.

2. The monies apportioned pursuant to subparagraphs a through e of paragraph 1 of this subsection shall be apportioned as follows: forty percent (40%) of such sum shall be distributed to the various counties in that proportion which the county road mileage of each county bears to the entire state road mileage as certified by the Transportation Commission and the remaining sixty percent (60%) of such sum shall be distributed to the various counties on the basis

1 which the population and area of each county bears to the total
2 population and area of the state. The population shall be as shown
3 by the last Federal Decennial Census or the most recent annual
4 estimate provided by the United States Bureau of the Census. The
5 funds shall be used for the purpose of constructing and maintaining
6 county highways; provided, however, the county treasurer may deposit
7 so much of the funds in the sinking fund as may be necessary for the
8 retirement of interest and annual accrual of indebtedness created by
9 the issuance of county or township bonds for road purposes. Such
10 deposits to the sinking fund shall not exceed forty percent (40%) of
11 the funds allocated to a county pursuant to this paragraph.

12 F. 1. The following percentages of the monies referred to in
13 subsection A of this section shall be remitted to the county
14 treasurers of the respective counties and by them deposited in a
15 separate special revenue fund to be used by the county commissioners
16 in accordance with paragraph 2 of this subsection:

- 17 a. from October 1, 2000, until June 30, 2001, two and
18 fifty-three one-hundredths percent (2.53%),
- 19 b. for the year beginning July 1, 2001, and ending June
20 30, 2002, two and fifty-six one-hundredths percent
21 (2.56%),
- 22 c. for the year beginning July 1, 2002, through the year
23 ending on June 30, 2015, two and fifty-nine one-
24 hundredths percent (2.59%),

- d. for the year beginning July 1, 2015, through the year ending on June 30, 2019, two and fifty-nine one-hundredths percent (2.59%), but in no event shall the amount apportioned in any fiscal year pursuant to this subparagraph exceed the total amount apportioned for the fiscal year ending on June 30, 2015. Any amounts in excess of such limitation shall be placed to the credit of the General Revenue Fund, and
- e. for the year beginning July 1, 2019, and all subsequent years, two and fifty-nine one-hundredths percent (2.59%), but in no event shall the amount apportioned in fiscal years 2019 through 2024 pursuant to this subparagraph exceed the total amount apportioned for the fiscal year ending on June 30, 2015, and in no event shall the amount apportioned in fiscal year 2026 and subsequent fiscal years exceed the amount apportioned for the fiscal year ending on June 30, 2025. Any amounts in excess of such limitation shall be placed to the credit of the Rebuilding Oklahoma Access and Driver Safety Fund created in Section 1521 of Title 69 of the Oklahoma Statutes.

2. The monies apportioned pursuant to subparagraphs a through e of paragraph 1 of this subsection shall be used for the primary

1 purpose of matching federal funds for the construction of federal
2 aid projects on county roads, or constructing and maintaining county
3 or township highways and permanent bridges of such counties. The
4 distribution of monies apportioned by this paragraph shall be made
5 upon the basis of the current formula based upon road mileage, area
6 and population as related to county road improvement and maintenance
7 costs. Provided, however, the Department of Transportation may
8 update the formula factors from time to time as necessary to account
9 for changing conditions.

10 G. 1. The following percentages of the monies referred to in
11 subsection A of this section shall be transmitted by the Tax
12 Commission to the various counties as set forth in paragraph 2 of
13 this subsection:

14 a. from October 1, 2000, until June 30, 2001, three and
15 fifty-five one-hundredths percent (3.55%),

16 b. for the year beginning July 1, 2001, and ending June
17 30, 2002, three and fifty-nine one-hundredths percent
18 (3.59%),

19 c. for the year beginning July 1, 2002, through the year
20 ending on June 30, 2015, three and sixty-two one-
21 hundredths percent (3.62%),

22 d. for the year beginning July 1, 2015, through the year
23 ending on June 30, 2019, three and sixty-two one-
24 hundredths percent (3.62%), but in no event shall the

1 amount apportioned in any fiscal year pursuant to this
2 subparagraph exceed the total amount apportioned for
3 the fiscal year ending on June 30, 2015. Any amounts
4 in excess of such limitation shall be placed to the
5 credit of the General Revenue Fund, and

6 e. for the year beginning July 1, 2019, and all
7 subsequent years, three and sixty-two one-hundredths
8 percent (3.62%), but in no event shall the amount
9 apportioned in fiscal years 2019 through 2024 pursuant
10 to this subparagraph exceed the total amount
11 apportioned for the fiscal year ending on June 30,
12 2015, and in no event shall the amount apportioned in
13 fiscal year 2026 and subsequent fiscal years exceed
14 the amount apportioned for the fiscal year ending on
15 June 30, 2025. Any amounts in excess of such
16 limitation shall be placed to the credit of the
17 Rebuilding Oklahoma Access and Driver Safety Fund
18 created in Section 1521 of Title 69 of the Oklahoma
19 Statutes.

20 2. The monies apportioned pursuant to subparagraphs a through e
21 of paragraph 1 of this subsection shall be transmitted to the
22 various counties on the basis of a formula to be developed by the
23 Department of Transportation. Such formula shall be similar to that
24 currently used for the distribution of County Bridge Program funds,

1 but also taking into consideration the effect of terrain and traffic
2 volume as related to county road improvement and maintenance costs.
3 Provided, however, the Department of Transportation may update the
4 formula factors from time to time as necessary to account for
5 changing conditions. The funds shall be transmitted to the various
6 county treasurers to be deposited in the county highway fund of
7 their respective counties.

8 H. 1. The following percentages of the monies referred to in
9 subsection A of this section shall be apportioned to the various
10 counties as set forth in paragraph 2 of this subsection:

- 11 a. from October 1, 2000, until June 30, 2001, eighty-one
12 one-hundredths percent (0.81%),
- 13 b. for the year beginning July 1, 2001, and ending June
14 30, 2002, eighty-two one-hundredths percent (0.82%),
- 15 c. for the year beginning July 1, 2002, through the year
16 ending on June 30, 2015, eighty-three one-hundredths
17 percent (0.83%),
- 18 d. for the year beginning July 1, 2015, through the year
19 ending on June 30, 2019, eighty-three one-hundredths
20 percent (0.83%), but in no event shall the amount
21 apportioned in any fiscal year pursuant to this
22 subparagraph exceed the total amount apportioned for
23 the fiscal year ending on June 30, 2015. Any amounts
24

1 in excess of such limitation shall be placed to the
2 credit of the General Revenue Fund, and
3 e. for the year beginning July 1, 2019, and all
4 subsequent years, eighty-three one-hundredths percent
5 (0.83%), but in no event shall the amount apportioned
6 in any fiscal year pursuant to this subparagraph
7 exceed the total amount apportioned for the fiscal
8 year ending on June 30, 2015. Any amounts in excess
9 of such limitation shall be placed to the credit of
10 the Rebuilding Oklahoma Access and Driver Safety Fund
11 created in Section 1521 of Title 69 of the Oklahoma
12 Statutes.

13 2. The monies apportioned pursuant to subparagraphs a through e
14 of paragraph 1 of this subsection shall be apportioned to the
15 various counties based upon the proportion that each county's
16 population bears to the total state population.

17 Each county's allocation of funds shall be remitted to the
18 various county treasurers to be deposited in the general fund of the
19 county and used for the support of county government.

20 I. 1. The following percentages of the monies referred to in
21 subsection A of this section shall be apportioned to the various
22 cities and incorporated towns as set forth in paragraph 2 of this
23 subsection:
24

- 1 a. from October 1, 2000, until June 30, 2001, three and
2 four one-hundredths percent (3.04%),
- 3 b. for the year beginning July 1, 2001, and ending June
4 30, 2002, three and eight one-hundredths percent
5 (3.08%),
- 6 c. for the year beginning July 1, 2002, through the year
7 ending on June 30, 2015, three and ten one-hundredths
8 percent (3.10%),
- 9 d. for the year beginning July 1, 2015, through the year
10 ending on June 30, 2019, three and ten one-hundredths
11 percent (3.10%), but in no event shall the amount
12 apportioned in any fiscal year pursuant to this
13 subparagraph exceed the total amount apportioned for
14 the fiscal year ending on June 30, 2015. Any amounts
15 in excess of such limitation shall be placed to the
16 credit of the General Revenue Fund, and
- 17 e. for the year beginning July 1, 2019, and all
18 subsequent years, three and ten one-hundredths percent
19 (3.10%), but in no event shall the amount apportioned
20 in any fiscal year pursuant to this subparagraph
21 exceed the total amount apportioned for the fiscal
22 year ending on June 30, 2015. Any amounts in excess
23 of such limitation shall be placed to the credit of
24 the Rebuilding Oklahoma Access and Driver Safety Fund

1 created in Section 1521 of Title 69 of the Oklahoma
2 Statutes.

3 2. The monies apportioned pursuant to subparagraphs a through e
4 of paragraph 1 of this subsection shall be apportioned to the
5 various cities and incorporated towns based upon the proportion that
6 each city or incorporated town's population bears to the total
7 population of all cities and incorporated towns in the state. Such
8 funds shall be remitted to the various county treasurers for
9 allocation to the various cities and incorporated towns. All such
10 funds shall be used for the construction, maintenance, repair,
11 improvement and lighting of streets and alleys. Provided, however,
12 the governing board of any city or town may, with the approval of
13 the county excise board, transfer any surplus funds to the general
14 revenue fund of such city or town whenever an emergency requires
15 such a transfer.

16 J. The following percentages of the monies referred to in
17 subsection A of this section shall be remitted to the State
18 Treasurer to be credited to the Oklahoma Law Enforcement Retirement
19 Fund:

20 1. From October 1, 2000, until June 30, 2001, one and twenty-
21 two one-hundredths percent (1.22%);

22 2. For the year beginning July 1, 2001, and ending June 30,
23 2002, one and twenty-three one-hundredths percent (1.23%); and
24

1 3. For the year beginning July 1, 2002, and all subsequent
2 years, one and twenty-four one-hundredths percent (1.24%).

3 K. Three one-hundredths of one percent (3/100 of 1%) of the
4 monies referred to in subsection A of this section shall be remitted
5 to the State Treasurer to be credited to the Wildlife Conservation
6 Fund. Seventy-five percent (75%) of the funds shall be used for
7 fish habitat restoration and twenty-five percent (25%) of the funds
8 shall be used in the fish hatchery system for fish production.

9 L. 1. For the year beginning July 1, 2007, and ending June 30,
10 2008, five percent (5%) of monies referred to in subsection A of
11 this section shall be remitted to the State Treasurer to be credited
12 to the County Improvements for Roads and Bridges Fund as created in
13 Section 507 of Title 69 of the Oklahoma Statutes.

14 2. For the year beginning July 1, 2008, and ending June 30,
15 2009, ten percent (10%) of monies referred to in subsection A of
16 this section shall be remitted to the State Treasurer to be credited
17 to the County Improvements for Roads and Bridges Fund as created in
18 Section 507 of Title 69 of the Oklahoma Statutes.

19 3. For the period beginning July 1, 2009, and ending December
20 31, 2012, fifteen percent (15%) of monies referred to in subsection
21 A of this section shall be remitted to the State Treasurer to be
22 credited to the County Improvements for Roads and Bridges Fund as
23 created in Section 507 of Title 69 of the Oklahoma Statutes.

1 4. For the period beginning January 1, 2013, and ending June
2 30, 2013, fifteen and fifty one-hundredths percent (15.50%) of
3 monies referred to in subsection A of this section shall be remitted
4 to the State Treasurer to be credited to the County Improvements for
5 Roads and Bridges Fund as created in Section 507 of Title 69 of the
6 Oklahoma Statutes.

7 5. For the year beginning July 1, 2013, and ending June 30,
8 2014, eighteen percent (18%) of monies referred to in subsection A
9 of this section shall be remitted to the State Treasurer to be
10 credited to the County Improvements for Roads and Bridges Fund as
11 created in Section 507 of Title 69 of the Oklahoma Statutes.

12 6. For the year beginning July 1, 2014, twenty percent (20%) of
13 monies referred to in subsection A of this section shall be remitted
14 to the State Treasurer to be credited to the County Improvements for
15 Roads and Bridges Fund as created in Section 507 of Title 69 of the
16 Oklahoma Statutes.

17 7. For the year beginning July 1, 2015, through the year ending
18 on June 30, 2019, twenty percent (20%) of monies referred to in
19 subsection A of this section shall be remitted to the State
20 Treasurer to be credited to the County Improvements for Roads and
21 Bridges Fund as created in Section 507 of Title 69 of the Oklahoma
22 Statutes, but in no event shall the total amount apportioned in any
23 fiscal year pursuant to this paragraph exceed One Hundred Twenty
24 Million Dollars (\$120,000,000.00). Any amounts in excess of One

1 Hundred Twenty Million Dollars (\$120,000,000.00) shall be placed to
2 the credit of the General Revenue Fund.

3 8. a. Except as provided in subparagraph b of this
4 paragraph, for the year beginning July 1, 2019, and
5 all subsequent years, twenty percent (20%) of monies
6 referred to in subsection A of this section shall be
7 remitted to the State Treasurer to be credited to the
8 County Improvements for Roads and Bridges Fund as
9 created in Section 507 of Title 69 of the Oklahoma
10 Statutes, but in no event shall the total amount
11 apportioned in any fiscal year pursuant to this
12 paragraph exceed the fiscal year limitations provided
13 in subparagraph c of this paragraph. Any amounts in
14 excess of the fiscal year limitations provided in
15 subparagraph c of this paragraph shall be placed to
16 the credit of the Rebuilding Oklahoma Access and
17 Driver Safety Fund created in Section 1521 of Title 69
18 of the Oklahoma Statutes,

19 b. (1) for the fiscal year beginning July 1, 2021,
20 through the fiscal year ending June 30, 2026, the
21 Oklahoma Tax Commission shall remit twenty-five
22 percent (25%) of the monthly allocation,
23 otherwise scheduled to be credited to the County
24 Improvements for Roads and Bridges Fund, to the

1 various counties of the state. The Commission
2 shall distribute such funds monthly to each
3 county treasurer as follows:

4 (a) one-third (1/3) of such funds shall be
5 distributed to the various counties in the
6 proportion which the area of each county
7 bears to the total area of the state,

8 (b) one-third (1/3) of such funds shall be
9 distributed to the various counties in the
10 proportion which the certified county road
11 miles of each county bear to the total sum
12 of county road miles in the state, and

13 (c) one-third (1/3) of such funds shall be
14 distributed to the various counties in the
15 proportion which the total replacement cost
16 for obsolete or deficient bridges according
17 to the most recent Department of
18 Transportation yearly Bridge Summary Report
19 for County Bridges for each county bears to
20 the total amount of such cost for all such
21 county bridges in the state, and

22 (2) for the fiscal year beginning July 1, 2026, and
23 all subsequent fiscal years thereafter, the
24 Oklahoma Tax Commission shall remit twenty-five

1 percent (25%) of the monthly allocation,
2 otherwise scheduled to be credited to the County
3 Improvements for Roads and Bridges Fund, to the
4 various counties of the state. The Commission
5 shall distribute such funds monthly to each
6 county treasurer as follows:

7 (a) one-third (1/3) of such funds shall be
8 distributed to the various counties in the
9 proportion which the area of each county
10 bears to the total area of the state,

11 (b) one-third (1/3) of such funds shall be
12 distributed to the various counties in the
13 proportion which the certified county road
14 miles of each county bear to the total sum
15 of county road miles in the state, and

16 (c) one-third (1/3) of such funds shall be
17 distributed to the various counties in the
18 proportion which the number of county
19 bridges in each county according to the
20 Department of Transportation 2020 Bridge
21 Summary Report for County Bridges bears to
22 the total sum of county bridges in the state
23 according to such report.

Each county treasurer shall deposit such funds to the county's county highway fund and such funds shall be used for maintenance and operations. In no event shall the total amount apportioned in any fiscal year pursuant to the provisions of subparagraphs a and b of this paragraph exceed the fiscal year limitations provided in subparagraph c of this paragraph, and

c. the total amount apportioned each fiscal year pursuant to this paragraph shall be limited as follows:

- | | | |
|-----|------------------------------|-------------------|
| (1) | for fiscal years 2020 | |
| | through 2022 | \$120,000,000.00, |
| (2) | for fiscal year 2023 | \$125,000,000.00, |
| (3) | for fiscal year 2024 | \$130,000,000.00, |
| (4) | for fiscal year 2025 | \$135,000,000.00, |
| (5) | for fiscal year 2026 | \$140,000,000.00, |
| (6) | for fiscal year 2027 | \$145,000,000.00, |
| (7) | for fiscal year 2028 and all | |
| | subsequent fiscal years | |
| | thereafter | \$150,000,000.00. |

M. Twenty-four and eighty-four one-hundredths percent (24.84%) of the monies referred to in subsection A of this section shall be remitted to the State Treasurer to be credited to the Rebuilding Oklahoma Access and Driver Safety Fund created in Section 1521 of Title 69 of the Oklahoma Statutes.

1 N. Monies allocated to counties by this section may be
2 estimated by the county excise board in the budget for the county as
3 anticipated revenue to the extent of ninety percent (90%) of the
4 previous year's income from such source; provided, not more than
5 fifteen percent (15%) can be encumbered during any month.

6 O. Notwithstanding any other provisions of this section, for
7 the fiscal year beginning July 1, 2003, the first One Hundred
8 Thousand Dollars (\$100,000.00) of the monies collected or received
9 by the Tax Commission pursuant to the registration of motorcycles
10 and mopeds in this state shall be placed to the credit of the
11 Oklahoma Tax Commission Revolving Fund.

12 SECTION 19. AMENDATORY 47 O.S. 2021, Section 1137.1, as
13 last amended by Section 11, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
14 2024, Section 1137.1), is amended to read as follows:

15 Section 1137.1. A. Except for vehicles, travel trailers or
16 commercial trailers which display a current Oklahoma license tag,
17 upon the purchase or transfer of ownership of a used motor vehicle,
18 travel trailer or commercial trailer, including an out-of-state
19 purchase or transfer of the same, to a licensed used motor vehicle
20 dealer, wholesale used motor vehicle dealer, used travel trailer
21 dealer or used commercial trailer dealer, subsequently referred to
22 in this section as "dealer", the dealer shall affix a used dealer's
23 plate visible from the rear of the vehicle, travel trailer or
24 commercial trailer. Such license plate shall expire on December 31

1 of each year. When the vehicle, travel trailer or commercial
2 trailer is parked on the dealer's licensed place of business, it
3 shall not be required to have a license plate of any kind affixed.
4 A dealer shall obtain from Service Oklahoma at a cost of Ten Dollars
5 (\$10.00) a dealer license plate for demonstrating, transporting or
6 any other normal business of a dealer including use by an individual
7 holding a valid salesperson's license issued by the Oklahoma Used
8 Motor Vehicle, Dismantler, and Manufactured Housing Commission. Any
9 dealer who operates a wrecker or towing service licensed pursuant to
10 Sections 951 through 957 of this title shall register each wrecker
11 vehicle and display a wrecker license plate on each vehicle as
12 required by Section 1134.3 of this title. A dealer may obtain as
13 many additional license plates as may be desired upon the payment of
14 Ten Dollars (\$10.00) for each additional license plate. Use of the
15 used dealer license plate by a licensed dealer for other than the
16 purposes as set forth herein shall constitute grounds for revocation
17 of the dealer's license. Service Oklahoma shall design the official
18 used dealer license plate to include the used dealer's license
19 number issued to him or her each year by Service Oklahoma or the
20 Oklahoma Used Motor Vehicle, Dismantler, and Manufactured Housing
21 Commission.

22 B. Upon the purchase or transfer of ownership of an out-of-
23 state used motor vehicle, travel trailer or commercial trailer to a
24 licensed dealer, the dealer shall make application for an Oklahoma

1 certificate of title pursuant to the Oklahoma Vehicle License and
2 Registration Act, Section 1101 et seq. of this title. Upon receipt
3 of the Oklahoma certificate of title, the dealer shall follow the
4 procedure as set forth in subsection A of this section. Provided,
5 nothing in this title shall be construed as requiring a dealer to
6 register a used motor vehicle, travel trailer or commercial trailer
7 purchased in another state which will not be operated or sold in
8 this state.

9 C. Upon sale or transfer of ownership of the used motor vehicle
10 or travel trailer, the dealer shall place upon the reassignment
11 portion of the certificate of title a tax stamp issued by the county
12 treasurer of the county in which the dealer has his or her primary
13 place of business. The tax stamp shall be issued upon payment of a
14 fee of Three Dollars and fifty cents (\$3.50) and shall be in lieu of
15 the dealer's ad valorem tax on the inventories of used motor
16 vehicles or travel trailers but shall not relieve any other property
17 of the dealer from ad valorem taxation.

18 D. Upon sale of a used motor vehicle or travel trailer to
19 another licensed dealer, the selling dealer shall place the tax
20 stamp required in subsection C of this section upon the certificate
21 of title. The used dealer license plate or wholesale dealer license
22 plate shall be removed by the selling dealer. The purchasing dealer
23 shall, at time of purchase, place his or her dealer license plate on
24 the used motor vehicle, travel trailer or commercial trailer as

1 provided in subsection A of this section; provided, for vehicles,
2 travel trailers or commercial trailers purchased by a licensed used
3 dealer at an auction, in lieu of such placement of the dealer
4 license plate, the auction may provide temporary documentation as
5 approved by the Director of the Motor Vehicle Division of Service
6 Oklahoma for the purpose of transporting such vehicle to the
7 purchaser's point of destination. Such temporary documentation
8 shall be valid for two (2) days following the date of sale.

9 E. 1. The purchaser of every used motor vehicle, travel
10 trailer, or commercial trailer, except as otherwise provided by law,
11 shall obtain registration and title for the vehicle or trailer
12 within two (2) months from the date of purchase of same. It shall
13 be the responsibility of the selling dealer to place a temporary
14 license plate, in size similar to the permanent Oklahoma license
15 plate but of a ten-mil weatherproof plastic-impregnated paper
16 approved by the Oklahoma Used Motor Vehicle, Dismantler, and
17 Manufactured Housing Commission, upon a used motor vehicle, travel
18 trailer or commercial trailer when a transaction is completed for
19 the sale of such vehicle. Provided, upon a determination by the
20 Commission that there exists a national shortage of ten-mil
21 weatherproof plastic-impregnated paper, eight-mil weatherproof
22 plastic-impregnated paper may be approved by the Commission until it
23 has been determined by the Commission the shortage has ended. The
24 temporary license plate under this subsection shall be placed at the

1 location provided for the permanent motor vehicle license plate.
2 The temporary license plate shall show the license number which is
3 issued to the dealer each year by Service Oklahoma or the Oklahoma
4 Used Motor Vehicle, Dismantler, and Manufactured Housing Commission,
5 the date of expiration, and the company name of the selling dealer.

6 2. The Oklahoma Used Motor Vehicle, Dismantler, and
7 Manufactured Housing Commission is hereby directed to develop the
8 motor vehicle temporary license plate design to incorporate these
9 requirements in a manner that will permit law enforcement personnel
10 to readily identify the dealer license number and date of
11 expiration. The Oklahoma Used Motor Vehicle, Dismantler, and
12 Manufactured Housing Commission is hereby authorized to develop
13 additional requirements and parameters as deemed appropriate to
14 discourage or prevent illegal duplication and use of the temporary
15 license plate. Such motor vehicle temporary license plate shall be
16 valid for a period of ten (10) days from the date of purchase. Use
17 of the motor vehicle temporary license plate by a dealer for other
18 than the purposes set forth herein shall constitute grounds for
19 revocation of the dealer's license to conduct business. Purchasers
20 of a commercial trailer shall affix the commercial trailer temporary
21 license plate to the rear of the commercial trailer. The purchaser
22 of a motor vehicle shall display the motor vehicle temporary license
23 plate for a period not to exceed ten (10) days or until registration
24 and title are obtained as provided in this section. The purchaser

1 of a commercial trailer shall display the commercial trailer
2 temporary license plate for a period not to exceed two (2) months or
3 until registration and title are obtained as provided in this
4 section.

5 3. The provisions of this subsection on temporary licenses
6 shall apply to nonresidents who purchase a used motor vehicle,
7 travel trailer, or commercial trailer within this state that is to
8 be licensed in another state. The nonresident purchaser shall be
9 allowed to operate the vehicle or trailer within the state with a
10 temporary license plate for a period not to exceed ten (10) days
11 from date of purchase. Any nonresident purchaser found to be
12 operating a used motor vehicle, travel trailer, or commercial
13 trailer within this state after two (2) months shall be subject to
14 the registration fees of this state upon the same terms and
15 conditions applying to residents of this state. Additionally,
16 within two (2) business days of the date of the sale or transfer of
17 the vehicle or trailer, the parties shall submit the requisite
18 documentation to Service Oklahoma or licensed operator identifying
19 the vehicle or trailer subject to the sale or transfer, purchaser
20 information, and any associated license plate on the vehicle,
21 pursuant to the requirements of Section 1112.2 of this title.

22 F. It shall be unlawful for any dealer to procure the
23 registration and licensing of any used motor vehicle, travel trailer
24 or commercial trailer sold by the dealer or to act as the agent for

1 the purchaser in the procurement of the registration and licensing
2 of the purchaser's used vehicle, travel trailer, or commercial
3 trailer. A license of any dealer violating the provision of this
4 section may be revoked.

5 G. Dealers following the procedure set forth herein shall not
6 be required to register vehicles, travel trailers, or commercial
7 trailers to which this section applies, nor will the registration
8 fee otherwise required be assessed. Provided, dealers shall not
9 purchase or trade for a used motor vehicle, travel trailer, or
10 commercial trailer on which the registration therefor has been
11 expired for a period exceeding two (2) months without obtaining
12 current registration therefor.

13 H. A nonprofit charitable organization which is exempt from
14 taxation pursuant to the provisions of the Internal Revenue Code, 26
15 U.S.C., Section 501(c)(3), and which accepts donations of used motor
16 vehicles previously titled in Oklahoma to be subsequently
17 transferred to another owner, upon the qualifying organization
18 providing sufficient documentation of its tax-exempt status, may
19 obtain from Service Oklahoma charitable nonprofit organization
20 license plates for demonstrating, transporting, or test-driving
21 donated vehicles, provided that no organization shall possess or use
22 at any one time more than eight such plates. Service Oklahoma shall
23 design distinctive license plates for that purpose. The cost for
24

1 such plates shall be the same as provided in subsection A of this
2 section for dealer plates.

3 I. The transfer of ownership from the vehicle donor to the
4 qualifying nonprofit organization described in subsection H of this
5 section shall be made without the payment of motor vehicle excise
6 tax levied pursuant to Section 2103 of Title 68 of the Oklahoma
7 Statutes.

8 SECTION 20. AMENDATORY 47 O.S. 2021, Section 1141.1, as
9 last amended by Section 14, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
10 2024, Section 1141.1), is amended to read as follows:

11 Section 1141.1. A. Each licensed operator shall be entitled to
12 retain the following amounts from the taxes and fees collected by
13 such licensed operator to be used to fund the operation of the
14 office of such licensed operator subject to the provisions of
15 Sections 1140 through 1147 of this title:

16 1. Beginning July 1, 2006, through June 30, 2023, Three Dollars
17 and fifty-six cents (\$3.56) for each vehicle registered pursuant to
18 the Oklahoma Vehicle License and Registration Act;

19 2. Beginning on or after January 1, 2022, through June 30,
20 2023, if a special or personalized license plate is issued pursuant
21 to Sections 1135.1 through 1135.7 of this title and remittance is
22 combined with the registration required pursuant to Section 1132 of
23 this title, Seven Dollars and twelve cents (\$7.12). Beginning July
24 1, 2023, through June 30, 2025, Three Dollars and fifty-six cents

1 (\$3.56) for each special license plate issued pursuant to Sections
2 1135.1 through Section 1135.7 of this title;

3 3. One Dollar and twenty-five cents (\$1.25) for each
4 certificate of title issued for boats and motors pursuant to the
5 Oklahoma Statutes;

6 4. For each certificate of registration issued for boats and
7 motors pursuant to the Oklahoma Statutes, an amount determined
8 pursuant to the provisions of subsection B of this section;

9 5. Two Dollars and twenty-five cents (\$2.25) for each
10 certificate of title issued pursuant to the Oklahoma Vehicle License
11 and Registration Act. Provided, the fee retention amount for
12 certificates of title issued pursuant to the provisions of
13 subsection H of Section 1105 of this title, in which an insurer pays
14 the optional twenty-two-dollar-fee amount, is Four Dollars and fifty
15 cents (\$4.50);

16 6. Beginning July 1, 2002, through June 30, 2023, each licensed
17 operator shall be entitled to retain three and twenty-five one-
18 hundredths percent (3.25%) of the vehicle excise tax collected
19 pursuant to Section 2103 of Title 68 of the Oklahoma Statutes;

20 7. Four percent (4%) of the excise tax collected on the
21 transfer of boats and motors pursuant to the Oklahoma Statutes
22 through June 30, 2025;

- 1 8. Two Dollars (\$2.00) for each driver license, endorsement,
2 identification license, or renewal or duplicate issued pursuant to
3 Section 6-101 et seq. of this title through June 30, 2023;
- 4 9. Two Dollars (\$2.00) for the recording of security interests
5 as provided in Section 1110 of this title;
- 6 10. Two Dollars (\$2.00) for each inspection conducted pursuant
7 to subsection L of Section 1105 of this title;
- 8 11. Three Dollars (\$3.00) for each inspection conducted
9 pursuant to subsection M of Section 1105 of this title;
- 10 12. One Dollar (\$1.00) for each certificate of ownership filed
11 pursuant to subsection R of Section 1105 of this title;
- 12 13. One Dollar (\$1.00) for each temporary permit issued
13 pursuant to Section 1124 of this title;
- 14 14. One Dollar and fifty cents (\$1.50) for processing each
15 proof of financial responsibility, driver license information,
16 insurance verification information, and other additional information
17 as provided in Section 7-602 of this title;
- 18 15. The mailing fees and registration fees provided in Sections
19 1131 and 1140 of this title;
- 20 16. The notary fee provided in Section 1143 of this title;
- 21 17. Three Dollars (\$3.00) for each lien entry form completed
22 and recorded on a certificate of title pursuant to subsection G of
23 Section 1105 of this title;
- 24

1 18. Seven Dollars (\$7.00) for each notice of transfer as
2 provided by subsection B of Section 1107.4 of this title;

3 19. Seven Dollars (\$7.00) for each certificate of title or each
4 certificate of registration issued for repossessed vehicles pursuant
5 to Section 1126 of this title;

6 20. Any amount specifically authorized by law to be retained by
7 the licensed operator for the furnishing of a summary of a traffic
8 record;

9 21. Beginning July 1, 2009, and through June 30, 2023, each
10 licensed operator shall also be entitled to a portion of the
11 penalties for delinquent registration or payment of excise tax as
12 provided for in subsection C of Section 1115, subsection F of
13 Section 1132 and subsection C of Section 1151 of this title and of
14 subsection A of Section 2103 of Title 68 of the Oklahoma Statutes;

15 22. Beginning January 1, 2023, each licensed operator shall be
16 entitled to retain Three Dollars and fifty-six cents (\$3.56) for
17 each electric vehicle registered pursuant to the provisions of this
18 act and such amount shall be in addition to any other amount
19 otherwise authorized by this section to be retained with respect to
20 a vehicle ~~though~~ through June 30, 2025;

21 23. Beginning January 1, 2023, and through June 30, 2023, each
22 licensed operator shall be entitled to retain three and twenty-five
23 hundredths percent (3.25%) of the vehicle excise tax collected
24 pursuant to Section 2103 of Title 68 of the Oklahoma Statutes for

1 each electric vehicle but such amount shall not be in addition to
2 any other amount otherwise authorized by this section to be retained
3 with respect to a vehicle; and

4 24. Upon the effective date of this act, Service Oklahoma is
5 authorized to set the licensed operator compensation pursuant to
6 Section 3-103 of this title for processing the documentation
7 submitted and issuing the license plate and/or decal pursuant to
8 this subsection.

9 The balance of the funds collected shall be remitted to Service
10 Oklahoma as provided in Section 1142 of this title to be apportioned
11 pursuant to Section 1104 of this title.

12 B. Through June 30, 2025, for each certificate of registration
13 issued for boats and motors, each licensed operator shall be
14 entitled to retain the greater of One Dollar and twenty-five cents
15 (\$1.25) or an amount to be determined by Service Oklahoma according
16 to the provisions of this subsection. At the end of fiscal year
17 1997 and each fiscal year thereafter, Service Oklahoma shall compute
18 the average amount of registration fees for all boats and motors
19 registered in this state during the fiscal year and shall multiply
20 the result by six and twenty-two one-hundredths percent (6.22%).
21 The resulting product shall be the amount which may be retained by
22 each licensed operator for each certificate of registration for
23 boats and motors issued during the following calendar year.

1 C. When an application for registration is made with Service
2 Oklahoma, the Corporation Commission or a licensed operator, a
3 registration fee of One Dollar and seventy-five cents (\$1.75) shall
4 be collected for each license plate or decal issued. Such fees
5 shall be in addition to the registration fees on motor vehicles and
6 when an application for registration is made to the licensed
7 operator, such licensed operator shall retain a fee as provided in
8 Section 1141.1 of this title through June 30, 2023. Beginning July
9 1, 2023, the fee shall be retained by the licensed operator pursuant
10 to subsection E of Section 1141.1 of this title. When the fee is
11 paid by a person making application directly with Service Oklahoma
12 or the Corporation Commission, as applicable, the registration fees
13 shall be in the same amount as provided for licensed operators and
14 the fee provided by this section shall be deposited in the Service
15 Oklahoma Revolving Fund or as provided in Section 1167 of this
16 title, as applicable. Service Oklahoma shall prepare schedules of
17 registration fees and charges for titles, which shall include the
18 fees for licensed operators, and all fees and charges paid by a
19 person shall be listed separately on the application and
20 registration and totaled on the application and registration. The
21 licensed operators shall charge only such fees as are specifically
22 provided for by law, and all such authorized fees shall be posted in
23 such a manner that any person shall have notice of all fees that are
24 imposed by law.

1 D. Unless otherwise provided, beginning July 1, 2025, the
2 provisions related to the reimbursement, retention, apportionment,
3 or distribution of funds to or by licensed operators as outlined in
4 this section shall be retained by the licensed operator pursuant to
5 subsection E of this section.

6 E. Beginning July 1, 2023, unless otherwise provided, licensed
7 operator compensation shall be fixed by Service Oklahoma pursuant to
8 Section 3-103 of this title.

9 1. For fiscal year beginning July 1, 2023, through the fiscal
10 year ending on June 30, 2025:

11 a. licensed operators shall be entitled to retain
12 nineteen percent (19%) of all fees collected related
13 to registrations provided by the Oklahoma Vehicle
14 License and Registration Act, ~~pursuant to subsection A~~
15 ~~of Section 1132 of this title, subsection A of Section~~
16 ~~1132.1 of this title, subsection A of Section 1132.4~~
17 ~~of this title, and subsection H of 1140 of this title,~~
18 and

19 b. licensed operators shall be entitled to retain forty
20 percent (40%) of all fees collected related to the
21 issuance of Class A, Class B, Class C, and Class D
22 driver licenses, permits, and identification cards,
23 including REAL ID Compliant and REAL ID Noncompliant
24

1 credentials, pursuant to Section 6-101 et seq. of this
2 title, and

3 c. licensed operators shall be entitled to retain Three
4 Dollars and fifty-six cents (\$3.56) for the annual
5 renewal of each frac tank, construction machinery,
6 rental trailer, commercial trailer or semitrailer
7 registered pursuant to Section 1133 of this title.

8 2. All other fees directed by this section shall default back
9 to the apportionment outlined in Section 1104 of this title.

10 SECTION 21. AMENDATORY 47 O.S. 2021, Section 1143, as
11 amended by Section 180, Chapter 282, O.S.L. 2022 (47 O.S. Supp.
12 2024, Section 1143), is amended to read as follows:

13 Section 1143. A. A licensed operator shall retain as
14 compensation those taxes and fees collected and retained pursuant to
15 Section 1141.1 of this title, and shall additionally retain:

16 1. All amounts remaining from notary and mailing fees and those
17 provided by Section 1105A of this title received by such licensed
18 operator, after payment of all costs of handling and mailing;

19 2. All profits from any concessions operated in the licensed
20 operator's office; and

21 3. All amounts collected pursuant to subsection H of Section
22 1111 of this title.

23 B. A licensed operator shall receive a fee as regulated in
24 Title 49 of the Oklahoma Statutes for each document notarized.

1 C. Service Oklahoma shall initiate a mail order vehicle
2 registration notification program, which shall consist of
3 notification annually to all vehicle owners in this state of such
4 time an owner shall register and license a vehicle as provided for
5 in Section 1101 et seq. of this title. The notification issued by
6 Service Oklahoma shall include a breakdown of all charges to be paid
7 by the owner, other items deemed necessary by Service Oklahoma and
8 shall notify the owner of the option of paying registration fees and
9 receiving the license plate or decal through the mail directly from
10 Service Oklahoma or of registering and receiving the license plate
11 or decal from a licensed operator. On the back of such registration
12 notification forms there shall be the address of Service Oklahoma in
13 large black type and an explanation of the apportionment of all
14 license fees and penalties collected and their disposition. Such
15 explanation shall include information as to all charges included in
16 the total license fee and any fees or charges incident to the
17 registration of a motor vehicle, to include all fees that a licensed
18 operator is authorized to collect. If the owner chooses the option
19 of receiving these services through the mail, either from Service
20 Oklahoma or the licensed operator, the owner shall then be
21 instructed to pay the final total listed. The costs of mailing
22 shall be the cost of postage plus One Dollar and twenty-five cents
23 (\$1.25) for license plates, the cost of postage plus One Dollar
24 (\$1.00) for decals and for the mailing of any other form, title,

1 decal or device provided for in the Oklahoma Vehicle License and
2 Registration Act. Provided however, Service Oklahoma may adjust any
3 mailing costs from time to time as it deems appropriate and as will
4 allow for additional fees the U.S. Postal Service may charge.

5 D. Money received by Service Oklahoma for the issuance of any
6 registrations, license plates or otherwise shall be apportioned to
7 the schools in accordance with other laws controlling such
8 distributions.

9 E. Failure by an owner of a vehicle to receive registration
10 notification as provided for in the Motor Vehicle License and
11 Registration Act shall not in any manner relieve such person from
12 the obligation of proper and timely registration and licensing of
13 such vehicle, and such person shall be subject to any penalties
14 prescribed by the Oklahoma Vehicle License and Registration Act.

15 F. A licensed operator, out of the taxes and fees collected and
16 retained pursuant to Section 1141.1 of this title, shall obtain a
17 faithful performance surety bond or cash bond in the amount of
18 Thirty Thousand Dollars (\$30,000.00) or in such additional amount
19 and form required by Service Oklahoma or by the Oklahoma Vehicle
20 License and Registration Act, a blanket surety bond or cash bond
21 covering adequately all office personnel, necessary insurance,
22 necessary office equipment and furniture, and other goods and
23 services essential to the proper operation of the Service Oklahoma
24 location. Provided that Service Oklahoma shall have the authority

1 to lower such required surety bond to an amount that is commensurate
2 with the amount of business conducted by the licensed operator, but
3 in no event shall that amount be less than Five Thousand Dollars
4 (\$5,000.00). Licensed operators shall obtain the surety bond or
5 cash bond required by this section only during their first year of
6 operation. Thereafter, the licensed operators shall be subject to
7 the provisions of Section 1143.1 of this title.

8 SECTION 22. AMENDATORY 63 O.S. 2021, Section 4021, as
9 amended by Section 215, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
10 2024, Section 4021), is amended to read as follows:

11 Section 4021. A. The application required for the initial and
12 subsequent registration of a vessel or a motor shall be accompanied
13 by payment of the following fees:

14 1. Where the manufacturer's factory delivered price, or in the
15 absence of such price being published in a recognized publication
16 for the use of marine dealers and/or for purposes of insurance and
17 financing firms, where the provable original or new cost of all
18 materials, is One Hundred Fifty Dollars (\$150.00) or less, the
19 registration and license fee for the first and for each succeeding
20 year's registration shall be One Dollar (\$1.00);

21 2. Where the manufacturer's factory delivered price, or in the
22 absence of such price being published as provided in paragraph 1 of
23 this section, where the value of such vessel or motor is determined
24 and fixed as above required and, is in excess of One Hundred Fifty

1 Dollars (\$150.00), there shall be added to the fee of One Dollar
2 (\$1.00), the sum of One Dollar (\$1.00) for each One Hundred Dollars
3 (\$100.00) or any fraction thereof, in excess of One Hundred Fifty
4 Dollars (\$150.00) provided such fee shall not exceed One Hundred
5 Fifty Dollars (\$150.00);

6 3. After the first year's registration in this state under the
7 Oklahoma Vessel and Motor Registration Act of any new vessel or new
8 motor under paragraph 2 of this subsection, the registration for the
9 second year shall be ninety percent (90%) of the fee computed and
10 assessed hereunder for the first year, and thereafter, such fee
11 shall be computed and assessed at ninety percent (90%) of the
12 previous year's fee and shall be so computed and assessed for the
13 next nine (9) successive years provided such fee shall not exceed
14 One Hundred Fifty Dollars (\$150.00);

15 4. The initial and subsequent registration fee for any vessel
16 which is a part of a fleet used for lodging and for which a rental
17 fee and sales tax are collected shall be Forty Dollars (\$40.00) in
18 lieu of the fees required by paragraphs 1 through 3 of this
19 subsection. For the purpose of this paragraph, "fleet" means twenty
20 or more vessels operated by a business organization from a single
21 anchorage. The fee provided for in this paragraph may be reduced
22 annually to zero until the total reduction equals the difference
23 between the sum of the fees paid pursuant to paragraphs 1 through 3
24

1 of this subsection for the two registration years preceding January
2 1, 1990, and the fee provided for in this paragraph;

3 5. For any vessel or motor owned and numbered, registered or
4 licensed prior to January 1, 1990, in this or any other state, or in
5 the absence of such registration upon proof of the year, model and
6 age of same, the registration fee shall be computed and assessed at
7 the rate hereinabove provided for a new vessel or motor based on the
8 value thereof determined as provided in this subsection, but reduced
9 as though same had been registered for each prior year of its
10 existence. Except as provided in paragraph 1 of this subsection,
11 the registration fee for the eleventh year computed in accordance
12 with the provisions of this subsection shall be the amount of the
13 fee to be assessed for such eleventh year and shall be the minimum
14 annual registration fee for such vessel or motor for any subsequent
15 year; and

16 6. The initial and subsequent registration fee for any vessel
17 or motor which is not being used in a trade or business or for any
18 commercial purpose and is owned by:

- 19 a. a nonresident member of the Armed Forces of the United
20 States assigned to duty in this state in compliance
21 with official military or naval orders,
22 b. a resident member of the Armed Forces of the United
23 States assigned to duty in this state in compliance
24 with official military or naval orders,

1 c. the spouse, who resides in Oklahoma, of a resident or
2 nonresident member of the Armed Forces of the United
3 States serving in a foreign country, or

4 d. any Oklahoma resident who is stationed out of state
5 due to an official assignment of the Armed Forces of
6 the United States,

7 shall be the lesser of either a Fifteen Dollar (\$15.00) registration
8 fee or the fee computed and assessed for vessels or motors of
9 similar age and model pursuant to this section.

10 B. As used in this section, the term "manufacturer's factory
11 delivered price" shall represent the recommended retail selling
12 price and shall not mean the wholesale price to a dealer.

13 C. Service Oklahoma shall assess the registration fees and
14 penalties for the year or years a vessel or motor was not registered
15 as provided in the Oklahoma Vessel and Motor Registration Act. For
16 vessels or motors not registered for two (2) or more years, the
17 registration fees and penalties shall be due only for the current
18 year and one (1) previous year.

19 D. Upon each vessel or motor repossessed by a mortgagee, a fee
20 of Forty-six Dollars (\$46.00) shall be assessed. This fee shall be
21 in lieu of any applicable vessel or motor excise tax and
22 registration fees. ~~Each~~ Through June 30, 2025, each licensed
23 operator accepting applications for certificates of title for such
24 vessel or motors shall receive Seven Dollars (\$7.00) to be deducted

1 from the license fee specified in this paragraph for each
2 application accepted. Beginning July 1, 2025, these fees shall be
3 retained by the licensed operator pursuant to subsection E of
4 Section 1141.1 of Title 47 of the Oklahoma Statutes.

5 E. All vessels or motors owned by the State of Oklahoma, its
6 agencies or departments, or political subdivisions thereof, or which
7 under the law would be exempt from direct ad valorem taxation, shall
8 be registered pursuant to the provisions of the Oklahoma Vessel and
9 Motor Registration Act for an annual fee of Two Dollars and twenty-
10 five cents (\$2.25) irrespective of whether registered by a licensed
11 operator or Service Oklahoma.

12 F. All vessels and motors owned:

13 1. By the Boy Scouts of America, the Girl Scouts of U.S.A., and
14 the Camp Fire USA, devoted exclusively to youth programs emphasizing
15 physical fitness, character development and citizenship training;

16 2. By the Department of Public Safety; and

17 3. By organizations which are exempt from taxation pursuant to
18 the provisions of Section 501(c)(3) of the Internal Revenue Code, 26
19 U.S.C., Section 501(c)(3), and which are primarily devoted to the
20 establishment, development, operation, promotion, and participation
21 in, alone or in conjunction with others, educational and training
22 programs and competitive events to provide knowledge, information,
23 or comprehensive skills related to the sports of sailing, fishing,
24 boating, and other aquatic-related activities;

1 are hereby exempt from the payment of registration fees required by
2 this section. Provided all of such vessels or motors shall be
3 registered and shall otherwise comply with the provisions of the
4 Oklahoma Vessel and Motor Registration Act.

5 G. A credit shall be allowed with respect to the fee for
6 registration of any new vessel or new motor, when such new vessel or
7 motor is a replacement for:

8 1. A new original vessel or new original motor which is stolen
9 from the purchaser/registrant within ninety (90) days of the date of
10 purchase of the original vessel or new original motor as certified
11 by a police report or other documentation as required by Service
12 Oklahoma; or

13 2. A defective new original vessel or new original motor
14 returned by the purchaser/registrant to the seller within six (6)
15 months of the date of purchase of the defective new original vessel
16 or new original motor as certified by the manufacturer.

17 Such credit shall be in the amount of the fee for registration
18 which was paid for the new original vessel or new original motor and
19 shall be applied to the registration fee for the replacement vessel
20 or motor. In no event will said credit be refunded.

21 H. Upon proper proof of a lost certificate of registration
22 being made to Service Oklahoma or one of its licensed operators,
23 accompanied by an application therefor and payment of the fees
24 required by the Oklahoma Vessel and Motor Registration Act, a

1 duplicate certificate of registration shall be issued to the
2 applicant. The charge for such duplicate certificate of
3 registration shall be Two Dollars and twenty-five cents (\$2.25),
4 which charge shall be in addition to any other fees imposed by
5 Section 4022 of this title for any such vessel or motor.

6 I. In addition to any other fees levied by the Oklahoma Vessel
7 and Motor Registration Act, there is levied and there shall be paid
8 to Service Oklahoma, for each year a vessel or motor is registered,
9 a fee of One Dollar (\$1.00) for each vessel or motor for which a
10 registration or license fee is required pursuant to the provisions
11 of this section. The fee shall accrue and shall be collected upon
12 each vessel or motor under the same circumstances and shall be
13 payable in the same manner and times as apply to vessel and motor
14 licenses and registrations under the provisions of the Oklahoma
15 Vessel and Motor Registration Act; provided, the fee shall be paid
16 in full for the then current year at the time any vehicle is first
17 registered in a calendar year.

18 Monies collected pursuant to this subsection shall be
19 apportioned by Service Oklahoma to the State Treasurer for deposit
20 in the Trauma Care Assistance Revolving Fund created in Section 1-
21 2530.9 of this title.

22 The collection and payment of the fee shall be a prerequisite to
23 license or registration of any vessel or motor.

24

1 J. If a vessel or motor is donated to a nonprofit charitable
2 organization, the nonprofit charitable organization shall be exempt
3 from paying any current or past due registration fees, excise tax,
4 transfer fees, and penalties and interest; provided, subsequent to
5 such donation, if the person, entity or party acting on another's
6 behalf who donated the vessel or motor, purchases the same vessel or
7 motor from the nonprofit charitable organization receiving the
8 original donation, such person, entity or party acting on another's
9 behalf shall be liable for all current and past due registration
10 fees, excise tax, transfer fees, and penalties and interest on such
11 vehicle.

12 SECTION 23. AMENDATORY 68 O.S. 2021, Section 2103, as
13 amended by Section 236, Chapter 282, O.S.L. 2022 (68 O.S. Supp.
14 2024, Section 2103), is amended to read as follows:

15 Section 2103. A. 1. Except as otherwise provided in Sections
16 2101 through 2108 of this title, there shall be levied an excise tax
17 upon the transfer of legal ownership of any vehicle registered in
18 this state and upon the use of any vehicle registered in this state
19 and upon the use of any vehicle registered for the first time in
20 this state. Except for persons that possess an agricultural
21 exemption pursuant to Section 1358.1 of this title, the excise tax
22 shall be levied upon transfers of legal ownership of all-terrain
23 vehicles and motorcycles used exclusively off roads and highways
24 which occur on or after July 1, 2005, and upon transfers of legal

1 ownership of utility vehicles used exclusively off roads and
2 highways which occur on or after July 1, 2008. The excise tax for
3 new and used all-terrain vehicles, utility vehicles and motorcycles
4 used exclusively off roads and highways shall be levied at four and
5 one-half percent (4 1/2%) of the actual sales price of each new and
6 used all-terrain vehicle and motorcycle used exclusively off roads
7 and highways before any discounts or credits are given for a trade-
8 in. Provided, the minimum excise tax assessment for such all-
9 terrain vehicles, utility vehicles and motorcycles used exclusively
10 off roads and highways shall be Five Dollars (\$5.00). The excise
11 tax for new vehicles shall be levied at three and one-fourth percent
12 (3 1/4%) of the value of each new vehicle. The excise tax for used
13 vehicles shall be as follows:

- 14 a. from October 1, 2000, until June 30, 2001, Twenty
15 Dollars (\$20.00) on the first One Thousand Dollars
16 (\$1,000.00) or less of value of such vehicle, and
17 three and one-fourth percent (3 1/4%) of the remaining
18 value of such vehicle,
19 b. for the year beginning July 1, 2001, and ending June
20 30, 2002, Twenty Dollars (\$20.00) on the first One
21 Thousand Two Hundred Fifty Dollars (\$1,250.00) or less
22 of value of such vehicle, and three and one-fourth
23 percent (3 1/4%) of the remaining value of such
24 vehicle, and

1 c. for the year beginning July 1, 2002, and all
2 subsequent years, Twenty Dollars (\$20.00) on the first
3 One Thousand Five Hundred Dollars (\$1,500.00) or less
4 of value of such vehicle, and three and one-fourth
5 percent (3 1/4%) of the remaining value of such
6 vehicle.

7 2. There shall be levied an excise tax of Ten Dollars (\$10.00)
8 for any:

9 a. truck or truck-tractor registered under the provisions
10 of subsection A of Section 1133 of Title 47 of the
11 Oklahoma Statutes, for a laden weight or combined
12 laden weight of fifty-five thousand (55,000) pounds or
13 more,

14 b. trailer or semitrailer registered under subsection C
15 of Section 1133 of Title 47 of the Oklahoma Statutes,
16 which is primarily designed to transport cargo over
17 the highways of this state and generally recognized as
18 such, and

19 c. frac tank, as defined by Section 54 of Title 17 of the
20 Oklahoma Statutes, and registered under subsection C
21 of Section 1133 of Title 47 of the Oklahoma Statutes.

22 Except for frac tanks, the excise tax levied pursuant to this
23 paragraph shall not apply to special mobilized machinery, trailers,
24 or semitrailers manufactured, modified or remanufactured for the

1 purpose of providing services other than transporting cargo over the
2 highways of this state. The excise tax levied pursuant to this
3 paragraph shall also not apply to pickup trucks, vans, or sport
4 utility vehicles.

5 3. The tax levied pursuant to this section shall be due at the
6 time of the transfer of legal ownership or first registration in
7 this state of such vehicle; provided, the tax shall not be due at
8 the time of the issuance of a certificate of title for an all-
9 terrain vehicle, utility vehicle or motorcycle used exclusively off
10 roads and highways which is not required to be registered but which
11 the owner chooses to register pursuant to the provisions of
12 subsection B of Section 1115.3 of Title 47 of the Oklahoma Statutes,
13 and shall be collected by Service Oklahoma ~~or the Corporation~~
14 ~~Commission, as applicable,~~ or an appointed licensed operator, at the
15 time of the issuance of a certificate of title for any such vehicle.
16 In the event an excise tax is collected on the transfer of legal
17 ownership or use of the vehicle during any calendar year, then an
18 additional excise tax must be collected upon all subsequent
19 transfers of legal ownership. In computing the motor vehicle excise
20 tax, the amount collected shall be rounded to the nearest dollar.
21 The excise tax levied by this section shall be delinquent from and
22 after the thirtieth day after the legal ownership or possession of
23 any vehicle is obtained. Any person failing or refusing to pay the
24 tax as herein provided on or before date of delinquency shall pay in

1 addition to the tax a penalty of One Dollar (\$1.00) per day for each
2 day of delinquency, but such penalty shall in no event exceed the
3 amount of the tax. Of each dollar penalty collected pursuant to
4 this subsection:

5 a. ~~twenty-five cents (\$0.25)~~ fifty cents (\$0.50) shall be
6 apportioned as provided in Section 1104 of this title,
7 and

8 b. ~~twenty-five cents (\$0.25) shall be retained by the~~
9 ~~licensed operator, and~~

10 ~~e.~~ fifty cents (\$0.50) shall be deposited in the General
11 Revenue Fund for the fiscal year beginning on July 1,
12 2011, and for all subsequent fiscal years, shall be
13 deposited in the State Highway Construction and
14 Maintenance Fund.

15 B. The excise tax levied in subsection A of this section and
16 assessed on all commercial vehicles registered pursuant to Section
17 1120 of Title 47 of the Oklahoma Statutes and trailers and
18 semitrailers registered under subsection C of Section 1133 of Title
19 47 of the Oklahoma Statutes to transport cargo over the highways of
20 this state shall be in lieu of all sales and use taxes levied
21 pursuant to the Sales Tax Code or the Use Tax Code. The transfer of
22 legal ownership of any motor vehicle as used in this section and the
23 Sales Tax Code and the Use Tax Code shall include the lease, lease
24 purchase or lease finance agreement involving any truck in excess of

1 eight thousand (8,000) pounds combined laden weight or any truck-
2 tractor provided the vehicle is registered in Oklahoma pursuant to
3 Section 1120 of Title 47 of the Oklahoma Statutes or any frac tank,
4 trailer, semitrailer or open commercial vehicle registered pursuant
5 to Section 1133 of Title 47 of the Oklahoma Statutes. The excise
6 tax levied pursuant to this section shall not be subsequently
7 collected at the end of the lease period if the lessee acquires
8 complete legal title of the vehicle.

9 C. The provisions of this section shall not apply to transfers
10 made without consideration between:

11 1. Husband and wife;

12 2. Parent and child; or

13 3. An individual and an express trust which that individual or
14 the spouse, child or parent of that individual has a right to
15 revoke.

16 D. 1. There shall be a credit allowed with respect to the
17 excise tax paid for a new vehicle which is a replacement for:

18 a. a new original vehicle which is stolen from the
19 purchaser/registrant within ninety (90) days of the
20 date of purchase of the original vehicle as certified
21 by a police report or other documentation as required
22 by Service Oklahoma, or

23 b. a defective new original vehicle returned by the
24 purchaser/registrant to the seller within six (6)

1 months of the date of purchase of the defective new
2 original vehicle as certified by the manufacturer.

3 2. The credit allowed pursuant to paragraph 1 of this
4 subsection shall be in the amount of the excise tax which was paid
5 for the new original vehicle and shall be applied to the excise tax
6 due on the replacement vehicle. In no event shall the credit be
7 refunded.

8 E. Despite any other definitions of the terms "new vehicle" and
9 "used vehicle", to the contrary, contained in any other law, the
10 term "new vehicle" as used in this section shall also include any
11 vehicle of the latest manufactured model which is owned or acquired
12 by a licensed used motor vehicle dealer which has not previously
13 been registered in this state and upon which the motor vehicle
14 excise tax as set forth in this section has not been paid. However,
15 upon the sale or transfer by a licensed used motor vehicle dealer
16 located in this state of any such vehicle which is the latest
17 manufactured model, the vehicle shall be considered a used vehicle
18 for purposes of determining excise tax.

19 F. The provisions of this section shall not apply to state
20 government entities.

21 SECTION 24. REPEALER 47 O.S. 2021, Sections 6-110.2 and
22 1113.3, are hereby repealed.

23 SECTION 25. This act shall become effective July 1, 2025.
24

SECTION 26. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
April 21, 2025 - DO PASS